



CHAPTER cxxii.

An Act to empower the mayor aldermen and burgesses of the borough of Walsall to provide and work trolley vehicles on further routes to empower them to purchase lands for various purposes and to confer further powers with regard to the improvement of the borough and the consolidation of rates and for other purposes. A.D. 1925.
[7th August 1925.]

WHEREAS the mayor aldermen and burgesses of the borough of Walsall (in this Act called "the Corporation") are the owners of and work tramways and are authorised to work vehicles adapted for use upon roads without rails and moved by electrical power transmitted thereto from some external source. (in this Act called "trolley vehicles") and omnibuses in the borough of Walsall (in this Act called "the borough") and the neighbourhood thereof :

And whereas it is expedient to empower the Corporation to provide and work trolley vehicles along the routes in the borough along which the Corporation are authorised to construct and work tramways and along certain other routes within and beyond the borough :

And whereas it is expedient to make further provision with regard to the tramways trolley vehicles and omnibuses of the Corporation :

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And whereas it is expedient to confer upon the Corporation power to purchase the lands referred to in this Act for the several purposes mentioned in this Act :

And whereas it is expedient that the powers of the Corporation with regard to buildings sewers drains the prevention of disease sanitary matters slaughter-houses and the good government of the borough should be extended as by this Act provided :

And whereas it is expedient to appoint the Corporation acting by the council overseers of the parish of Walsall and to make provision for the consolidation of the rates levied in the borough :

And whereas it is expedient that the other provisions contained in this Act should be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas estimates have been prepared by the Corporation for the purposes hereinafter mentioned and such estimates are as follows :—

	£
For the provision of trolley vehicles - - -	42,500
For the provision of the electrical equipment and the construction of works necessary for working trolley vehicles - - -	21,500
For the erection of buildings for the purpose of trolley vehicles - - - - -	3,500
For reconstruction and reinstatement of roads on certain trolley vehicle routes -	24,000
For and in connection with the purchase of land - - - - -	39,000

And whereas the several works included in such estimates are permanent works and it is expedient that the cost thereof should be spread over a term of years :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

And whereas plans showing the lands required or which may be taken for the purposes or under the powers of this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of such lands were duly

deposited with the clerk of the peace for the county of Stafford which plans and book of reference are in this Act respectively referred to as the deposited plans and book of reference : A.D. 1925.

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

PART I.

PRELIMINARY.

1. This Act may be cited as the Walsall Corporation Short title.
 Act 1925.

2. This Act is divided into Parts as follows :—

Division of
 Act into
 Parts.

Part I.—Preliminary.

Part II.—Trolley vehicles tramways and omnibuses.

Part III.—Lands.

Part IV.—Buildings sewers drains and sanitary provisions.

Part V.—Recreation grounds &c.

Part VI.—Rating provisions.

Part VII.—Finance and miscellaneous.

3. The Lands Clauses Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act with the following exception and modification :— Incorporation of Acts.

(a) Section 127 of the Lands Clauses Consolidation Act 1845 (relating to the sale of superfluous lands) is not incorporated with this Act ;

(b) The bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be under the corporate seal of the Corporation and shall be sufficient without the addition of the sureties mentioned in that section.

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—
Interpreta-
tion.

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction And in this Act unless the subject or context otherwise requires—

“The Corporation” means the mayor aldermen and burgesses of the borough of Walsall;

“The borough” means the borough of Walsall;

“The council” means the council of the borough;

“The borough fund” “the borough rate” “the district fund” and “the general district rate” mean respectively the borough fund the borough rate the district fund and the general district rate of the borough;

“Trolley vehicle” means a mechanically propelled vehicle adapted for use upon roads without rails and moved by electrical power transmitted thereto from some external source;

“Road authority” means with reference to any road or part of a road over which any proposed trolley vehicle or omnibus service will pass the authority company or person charged with or liable to contribute to the maintenance of such road or part of a road;

“The Willenhall Railway” means the part of the light railway authorised by the South Staffordshire Light Railway Order 1900 situate in the urban district of Willenhall between Crescent Road and the Market Place;

“The town clerk” “the medical officer” and “the sanitary inspector” mean respectively the town clerk the medical officer of health and any sanitary inspector of the borough and include respectively any persons duly authorised to discharge temporarily the duties of those offices;

“Statutory borrowing power” means any power whether or not coupled with a duty of borrowing or continuing on loan or re-borrowing money or of redeeming or paying off or creating or continuing payment of or in respect of any

A.D. 1925.

annuity rentcharge rent or other security representing or granted in lieu of consideration money for the time being existing under any Act of Parliament public or local passed or to be passed or under any Provisional Order confirmed by Act of Parliament passed or to be passed or under any order or sanction of any Government department made or given or to be made or given by authority of any Act of Parliament passed or to be passed;

“Statutory security” means any security in which trustees are for the time being by or under any Act of Parliament passed or to be passed authorised to invest trust money and any mortgage bond debenture debenture stock stock or other security authorised by or under any Act of Parliament passed or to be passed of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 but does not include annuities rentcharges or securities transferable by delivery or any securities of the Corporation;

“Daily penalty” means a penalty for each day on which any offence is continued by a person after conviction;

“Infectious disease” means any infectious disease to which the Infectious Disease (Notification) Act 1889 is for the time being applicable within the borough;

“The Act of 1890” “the Act of 1900” “the Act of 1914” and “the Act of 1919” mean respectively the Walsall Corporation Act 1890 the Walsall Corporation Act 1900 the Walsall Corporation Act 1914 and the Walsall Corporation Act 1919;

“Revenues of the Corporation” includes the revenues of the Corporation from time to time arising from any land undertakings or other property for the time being of the Corporation and the rates or contributions leviable by or on the order or precept of the Corporation.

A.D. 1925.

PART II.

TROLLEY VEHICLES, TRAMWAYS AND OMNIBUSES.

Power to
use trolley
vehicles.

5.—(1) The Corporation may provide maintain and equip (but shall not manufacture) trolley vehicles and may work the same along the following routes :—

Route No. 1 In the rural district of Walsall and the urban district of Brownhills from the borough boundary in Lichfield Road along Lichfield Road to the junction of Lichfield Road and Chester Road at Shire Oak in the urban district of Brownhills :

Route No. 1A In the urban district of Brownhills from the termination at Shire Oak of Route No. 1 hereinbefore described along Chester Road to the junction of that road with Linden Road :

Route No. 2 In the rural district of Walsall and the urban district of Willenhall from the borough boundary in Wolverhampton Road along Wolverhampton Road and Walsall Road to the junction in the urban district of Willenhall of Walsall Road and Crescent Road :

Route No. 2A In the urban district of Willenhall from the termination of Route No. 2 hereinbefore described along Walsall Road Walsall Street and New Road to the Market Place Willenhall :

Route No. 3 In the borough from the Clock Tower on The Bridge along The Bridge St. Paul's Street Darwall Street and Hatherton Street to the junction of Hatherton Street and Lichfield Street :

Route No. 4 In the borough along Tower Street from its junction with Darwall Street to the junction of Tower Street and Lichfield Street :

Route No. 5 In the borough along Leicester Street from its junction with Darwall Street to the junction of Leicester Street with Lichfield Street and Bridge Street.

(2) The Corporation may also with the consent of the Minister of Transport and subject to such conditions as he may impose work trolley vehicles along any street or road along which they are at the date of the passing

of this Act authorised to construct or work tramways A.D. 1925.
Provided that the Corporation shall not be so authorised
to construct and work trolley vehicles along any street
or road forming part of the Walsall and Wednesbury
tramway route or the Walsall and Darlaston tramway
route :

Provided also that before equipping any route for
working trolley vehicles to include a turning point or
before arranging for a new turning point on any route the
Corporation shall submit plans of the turning point to
the Minister of Transport and to the road authority and
that no such turning point shall be used by the Corpora-
tion unless and until the plans thereof have been approved
by the said Minister who before giving such approval
shall consider any representations made to him by the
road authority.

6. For the protection of the Wolverhampton District
Electric Tramways Limited (in this section referred to as
“the company”) the following provisions shall unless
otherwise agreed in writing between the company and
the Corporation apply and have effect (that is to say) :—

For pro-
tection of
Wolver-
hampton
District
Electric
Tramways
Limited.

So long as the company are the owners of the light
railway in the urban district of Willenhall between
Crescent Road and the Market Place and if and while
the company are lessees of or work run over or use the
said light railway the Corporation shall not—

- (a) work trolley vehicles along Route No. 2A by
this Act authorised or any part thereof; or
- (b) under the powers conferred by subsection (2) of
the section of this Act of which the marginal
note is “Power to use trolley vehicles” work
trolley vehicles along any street or road com-
prised in the said route

without the consent of the company or otherwise than
upon and subject to such terms and conditions as the
company in giving any such consent shall think fit to
impose.

7.—(1) At any time after the passing of this Act
the Minister of Transport may by order authorise the
Corporation to abandon or discontinue temporarily or
permanently any of their tramways (for the time being)
along the route of which the Corporation have provided

As to
abandon-
ment of
tramways.

A.D. 1925. and equipped trolley vehicles under the provisions of this Act or any Provisional Order made thereunder.

(2) Before making any such order the Minister of Transport may hold such inquiry as he may consider desirable.

(3) Any order made under the provisions of this section may as from such date as may be specified therein provide for the cesser of all or any of the powers liabilities duties or obligations conferred or imposed upon the Corporation by any Act or order relating to any tramway to be abandoned or discontinued in pursuance of such order and may provide for the removal of the rails of such tramway from the surface of the road and for the portion of the road upon which such rails were laid to be left in good repair and condition.

As to main-
tenance of
roads on
trolley
vehicle
routes.

8. As from the date upon which and so long as a service of trolley vehicles is provided by the Corporation in lieu of a tramway service upon the route or routes of any of the tramways of the Corporation the revenue of the tramway undertaking of the Corporation shall (to such extent as the Corporation may from time to time by resolution determine) cease to be charged with expenses incurred by the Corporation upon or in connection with the maintenance and repair of roads along the route or routes upon which such service of trolley vehicles is provided under any statutory enactment relating to that undertaking but nothing in this section shall relieve the Corporation of any liability attaching to them in respect of such maintenance and repair.

Application
of pro-
visions of
Act of 1914
relating to
trolley
vehicles.

9. The following provisions of the Act of 1914 shall extend and apply to the provision maintenance and running of trolley vehicles under the powers of this Act :—

Section 22 (Contribution towards adaptation of roads) as amended by section 8 (Application of sections 22 and 23 of Act of 1914) of the Act of 1919;

Section 25 (Corporation not to be liable for claims for extraordinary traffic);

Section 27 (As to electrical works);

Section 29 (Corporation to have exclusive right of using apparatus for working trolley vehicles);

- Section 31 (Trolley vehicles to be tramcars for certain purposes); A.D. 1925.
- Section 32 (Application of certain provisions relating to tramways of Act of 1900 to trolley vehicles);
- Section 33 (Duties on licences for trolley vehicles);
- Section 36 (Inspection by Board of Trade) Provided that in its application to trolley vehicle routes authorised by the Act of 1914 or this Act the said section shall be read and have effect as if the words "No trolley vehicle route" were inserted therein instead of the words "The trolley vehicle system";
- Section 38 (For protection of Postmaster General);
- Section 39 (Use of tramway or trolley vehicle posts by Postmaster-General);
- Section 40 (Use of trolley vehicles for carriage of road materials &c.);
- Section 41 (Power to lease and make agreements for provision and working &c. of trolley vehicles and interchange of traffic);
- Section 45 (Payment of fares rates and charges);
- Section 47 (Shelters or waiting rooms);
- Section 48 (Penalty for malicious damage);
- Section 50 (Conveyance of mails);
- Section 51 (Through trolley vehicles and omnibuses);
- Section 52 (Trolley vehicles and omnibuses to form part of tramway undertaking);
- Section 60 (For protection of Midland Railway Company).

10. So much of section 30 (Application of certain provisions of Tramways Act 1870 to trolley vehicles) of the Act of 1914 as applies to trolley vehicles the provisions of section 52 (Transient offenders) of the Tram-

Amend-
 ment of
 section 30
 of Act of
 1914 and

A.D. 1925.
—
application
of section as
amended.

ways Act 1870 is hereby repealed and the said section 30 of the Act of 1914 shall also be amended by applying to trolley vehicles of the Corporation section 41 (Tramways to be removed in certain cases) of the Tramways Act 1870 and the said section 30 as so amended shall extend and apply to the provision maintenance and running of trolley vehicles by the Corporation.

Vehicles
not to be
deemed
light loco-
motives or
motor cars.

11.—(1) The trolley vehicles of the Corporation shall not be deemed to be light locomotives within the meaning of the Locomotives on Highways Act 1896 or of the byelaws and regulations made thereunder nor shall they be deemed to be motor cars within the meaning of any provisions of the Motor Car Act 1903 (except subsection (1) of section 1 and the provisions necessary for enforcing that subsection section 6 and the provisions as amended by the Roads Act 1920 relating to the licensing and licences of drivers) and subject to that exception neither that Act nor the regulations made under that Act nor the enactments mentioned in the schedule to the Locomotives on Highways Act 1896 nor the Locomotives Act 1898 shall apply to the said trolley vehicles.

(2) The trolley vehicles authorised by this Act shall not be deemed to be omnibuses within the meaning of the Town Police Clauses Act 1889.

(3) Section 34 (Vehicles not to be deemed light locomotives or motor cars) of the Act of 1914 is hereby repealed.

Approval
of vehicles
by Minister
of Trans-
port.

12.—(1) The trolley vehicles and the electrical equipment thereof used by the Corporation under the authority of this or any other Act shall be of such form construction weight and dimensions as the Minister of Transport may approve and no trolley vehicle shall be used by the Corporation which does not comply with the requirements of the Minister of Transport.

(2) Section 35 (Approval of vehicles by Board of Trade) of the Act of 1914 is hereby repealed.

Before applying to the Minister of Transport for his approval of the weight of any trolley vehicles to be used upon any road which crosses a bridge belonging to and repairable by a railway company the Corporation shall give to such railway company notice of the weight of the trolley vehicles proposed to be used by them and the

Minister of Transport shall consider and determine after such inquiry as he may think fit any objections which may be submitted by the railway company to him on the ground that the strength of such bridge is insufficient to carry trolley vehicles of such weight. Provided that notice of such objections shall be forwarded by such railway company to the Corporation at the same time as the same are submitted to the Minister of Transport.

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13. For the protection of the Willenhall Urban District Council (in this section referred to as "the council") the following provisions shall have effect unless otherwise agreed between the Corporation and the council:—

For protection of Willenhall Urban District Council.

(1) The Corporation shall not commence to run trolley vehicles on any part of Routes Nos. 2 or 2A authorised by this Act unless—

(a) they shall have acquired the Willenhall Railway in the Willenhall Urban District (in this section called "the district");

(b) the widening at the junction of Market Place and New Road described as Work No. 13 in the section of the Wolverhampton Corporation Act 1925 of which the marginal note is "Power to construct street improvements" has been completed:

(2) The Corporation shall not commence to run trolley vehicles on any part of the said Route No. 2A before the thirtieth day of September one thousand nine hundred and twenty-eight unless Walsall Street Willenhall has been widened on the southern side thereof as shown by the red dotted line on the plan marked "A" signed in triplicate by Sir Thomas Robinson the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred of which one copy has been deposited in the Parliament Office of the House of Lords and another copy in the Private Bill Office of the House of Commons:

(3) On the completion of the said widening of Walsall Street and the commencement by the Corporation of the running of trolley vehicles along Route No. 2A the Corporation shall pay

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to the council one half of such proportion of the net cost of such widening as shall fall to be borne by the council. Provided that the sum to be paid by the Corporation under this subsection shall not exceed the sum of one thousand pounds :

- (4) The Corporation shall so soon as they have purchased the Willenhall Railway remove the granite setts rails and track of the Willenhall Railway and of the tramway belonging to the Corporation in the district in such manner as not to interfere unnecessarily with traffic arrangements and such setts rails and track (all of which are hereinafter included in the expression "the tramway track") shall be and remain the property of the Corporation and shall forthwith be removed by or at the expense of the Corporation. The Corporation will accept responsibility for all accidents and damage to persons or property which may arise in connection with such removal and will indemnify the council from all actions claims and demands which may be made against them for or in respect of any such accidents or damage as aforesaid :
- (5) Any right of the council which is existing at the date of this Act or would but for the provisions of this section arise after that date to purchase such parts of the Willenhall Railway and the said tramway shall cease and determine immediately the Corporation shall have removed the tramway track :
- (6) (a) The council shall immediately the tramway track has been removed by the Corporation in accordance with the provisions of subsection (4) of this section or simultaneously with such removal reconstruct the portion of the carriageway from which the tramway track has been removed in a proper and workmanlike manner with six inches of tarmac laid upon the existing concrete foundation and the Corporation shall pay towards the cost of such reconstruction a sum of seven shillings per square yard. Provided that if the council decide to reconstruct the whole width of the said carriageway with a two-inch

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bitumistic carpet laid upon the existing concrete foundation under the tramway track and upon a six-inch concrete foundation to be laid in the portions of the road on each side of the tramway track the Corporation shall pay towards the cost of the reconstruction of that part of the said carriageway which is at the date of this Act repairable by the company or the Corporation and is occupied by the tramway track the sum of eight shillings and sixpence per square yard :

(b) Any payment which the Corporation are required to make under the provisions of this subsection shall be made each month for such portion of the work as may have been completed by the end of such month and such payments shall subject to the provisions of subsection (3) of this section discharge the Corporation for all time from all claims which may be brought or made against them in respect of any adaptation alteration or reconstruction of any road in the district forming part of the said Routes Nos. 2 or 2A or the maintenance and repair of such road :

(7) After the said carriageway shall have been reconstructed in accordance with the provisions of the last preceding subsection of this section the council shall maintain the same in a reasonable state of repair :

(8) The reconstruction of the carriageway shall be carried out by the council with all reasonable speed and during the work of reconstruction the Corporation shall provide a temporary passenger service along the route of the Willenhall Railway and the said tramway either by continuing to operate tramcars thereover or by the running of trolley vehicles or omnibuses or partly by one means and partly by the other and such temporary service shall be provided in as efficient a manner as all the circumstances of the case reasonably admit and the reconstruction shall be carried out in such a way as to facilitate as far as possible the operation of such service :

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- (9) The Corporation shall not commence to work trolley vehicles in the district until they have obtained the consent of the Minister of Transport to work trolley vehicles from The Bridge Walsall along Wolverhampton Road to the boundary of the parish of Bentley and every trolley vehicle running into the district along Route No. 2 shall start from The Bridge Walsall or a point within three hundred yards thereof and every trolley vehicle running from the district along Route No. 2 shall run to The Bridge Walsall or such a point as aforesaid and after the Corporation commence the running of trolley vehicles in the district they shall provide and thereafter maintain a proper and adequate service of such vehicles from The Bridge Walsall or such point to and from the district :
- (10) The Corporation will consult with the council as to the points which are to be fixed as stopping places on Route No. 2A and that portion of Route No. 2 which is within the district but the decision of the Corporation as to such stopping places shall be final :
- (11) Any question arising between the Corporation and the council under the provisions of this section or as to anything to be done or not to be done thereunder shall be referred to and determined by a single arbitrator to be appointed failing agreement between the parties in dispute by the Minister of Transport and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference and determination.

As to
reconstruction of
roads in
county.

14.—(1) The Corporation shall so soon as they shall have constructed any trolley vehicle route on any part of a main road remove the granite setts rails and track in the rural district of Walsall or the urban district of Brownhills of any tramway laid in such part of a main road being that portion of the road repairable by the Corporation (all of which is hereinafter included in the expression "the tramway track") in such manner as not to interfere unnecessarily with traffic arrangements and such setts rails and track shall be and remain the property of the Corporation and shall forthwith be removed by or

A.D. 1925.

at the expense of the Corporation The Corporation will accept responsibility for all accidents and damage to persons or property which may arise in connection with such removal and will indemnify the road authority (which expression where used in this section shall mean as regards a main road not retained by an urban district council the county council and in other cases the urban district council) from all actions claims and demands which may be made against them for or in respect of any such accidents or damage as aforesaid.

(2) (a) The road authority shall immediately the tramway track has been removed by the Corporation in accordance with the provisions of subsection (1) of this section or simultaneously with such removal reconstruct the portion of the carriageway from which the tramway track has been removed in a proper and workmanlike manner with six inches of tarmac laid upon the existing concrete foundations and the Corporation shall pay towards the cost of such reconstruction a sum of seven shillings per square yard Provided that if the road authority decide to reconstruct the whole width of the said carriageway with a two-inch bitumistic carpet laid upon the existing concrete foundation under the tramway track and upon a six-inch concrete foundation to be laid in the portions of the road on each side of such track the Corporation shall pay the road authority towards the cost of the reconstruction of that part of the said carriageway which is at the passing of this Act repairable by them and is occupied by the tramway track the sum of eight shillings and sixpence per square yard.

(b) Any payment which the Corporation are required to make under the provisions of this subsection shall be made each month for such portion of the work as may have been completed by the end of such month and such payments shall (subject to the provisions of subsection (2) of this section) discharge the Corporation for all time from all claims which may be brought or made against them in respect of any adaptation alteration or reconstruction of any road in the county forming part of the route along which the tramway track for which it is being substituted was laid or the maintenance and repair of any such road.

(3) After the said carriageway shall have been reconstructed in accordance with the provisions of the last

A.D. 1925. preceding subsection of this section the road authority shall maintain the same in a reasonable state of repair.

(4) The reconstruction of the carriageway shall be carried out by the road authority with all reasonable speed.

(5) Any question arising between the Corporation and the road authority under the provisions of this section or as to anything to be done or not to be done thereunder shall be referred to and determined by a single arbitrator to be appointed failing agreement between the parties in dispute by the Minister of Transport and subject as aforesaid the provisions of the Arbitration Act 1889 shall apply to any such reference and determination.

Confirming
agreement
with
Wolver-
hampton
District
Electric
Tramways
Limited.

15. The agreement dated the fourth day of August nineteen hundred and twenty-five and made between the Wolverhampton District Electric Tramways Limited of the one part and the Corporation of the other part of which a copy is set forth in the First Schedule to this Act is hereby confirmed and made binding upon the parties thereto and effect may and shall be given thereto accordingly.

For pro-
tection of
Darlaston
Urban
District
Council.

16. As from the first day of October nineteen hundred and twenty-five to the thirtieth day of September nineteen hundred and twenty-eight or until the rails of the Willenhall Railway are taken up (whichever shall be the earlier) the Corporation shall provide a service of cars on the light railway of the Wolverhampton District Electric Tramways Limited between the Bull Stake Darlaston and the Market Place Willenhall in accordance with the provisions of section 46 (Service of cars) of the South Staffordshire Light Railway Order 1900.

Minister
of Trans-
port may
authorise
new routes.

17.—(1) If at any time hereafter the Corporation desire to provide maintain equip and use trolley vehicles upon any road as defined by the Tramways Act 1870 (other than the roads along which they are authorised to use trolley vehicles under the foregoing provisions of this Act) they may make application to the Minister of Transport (in this section called "the Minister") and the Minister is hereby empowered to make a Provisional Order authorising the use by the Corporation subject to such conditions and restrictions (if any) as he may think fit of trolley vehicles upon any road to which such application relates and subject to the terms of the Provisional Order the

provisions of this Act shall apply as if the use of trolley vehicles upon such road were authorised by this Act. A.D. 1925.

(2) No application under this section shall be entertained by the Minister unless the Corporation shall—

(a) have published once in each of two successive weeks in the months of October or November in some newspaper or newspapers circulating in the borough or district to which the application relates notice of their intention to make such application and have published the like notice once in the London Gazette;

(b) have posted for fourteen consecutive days in the months of October or November in conspicuous positions in each of the roads along which it is proposed to run trolley vehicles a notice of their intention to make such application;

and each such notice shall state the time and method for bringing before the Minister any objections to the grant of such application.

(3) The Minister may and he is hereby empowered to prescribe the procedure with respect to any application for a Provisional Order under this section.

(4) The Minister shall consider any such application and may if he thinks fit direct an inquiry in relation thereto to be held or may otherwise inquire as to the propriety of proceeding upon such application and he shall consider any objection to such application that may be lodged with him in accordance with the prescribed procedure and shall determine whether or not it is expedient and proper that the application be granted either with or without addition or modification or subject or not to any restriction or condition.

(5) (a) No Provisional Order authorising the use of trolley vehicles on any road in a district outside the borough shall be made without the consent of the local authority of such district or (where the local authority are not the road authority) without the consent of the road authority. Provided that the consent of a road authority (not being the local authority of the district) shall not be unreasonably withheld and any question whether or not such consent has been unreasonably withheld shall be determined by the Minister of Transport.

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(b) No Provisional Order authorising the use of trolley vehicles upon any road in which any part of the tramways or light railways for the time being owned by or leased to the Wolverhampton District Electric Tramways Limited or the South Staffordshire Tramways (Lessee) Company Limited or the British Electric Traction Company Limited or the Dudley Stourbridge and District Electric Traction Company Limited or the Birmingham District Power and Traction Company Limited is situate or in competition with such tramways or light railways or any of them shall without the consent in writing of such of those companies as may be concerned be made during such period as the same are owned by or leased to the company concerned and any question whether any such competition would exist shall be determined by the Minister.

(6) In any case where it shall appear to the Minister of Transport expedient that the application be granted he may settle and make a Provisional Order authorising the same and shall as soon as conveniently may be thereafter procure a Bill to be introduced into either House of Parliament for an Act to confirm the Provisional Order which shall be set out at length in the schedule to the Bill and until confirmation with or without amendment by such Act of Parliament a Provisional Order under this Act shall not have any operation.

(7) If while any such Bill is pending in either House of Parliament a petition is presented against any Provisional Order comprised therein the Bill so far as it relates to the Order petitioned against may be referred to a Select Committee and the petitioner shall be allowed to appear and oppose as in the case of a Bill for a special Act.

(8) The Act of Parliament confirming a Provisional Order under this section shall be deemed a public general Act.

(9) The making of a Provisional Order under this section shall be *primâ facie* evidence that all the requirements of this section in respect of proceedings required to be taken previously to the making of such Order have been complied with.

(10) Any expenses incurred by the Minister in connection with the preparation and making of any

such Provisional Order and any expenses incurred by the Minister in connection with any inquiry under this section shall be paid by the Corporation. A.D. 1925.
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(11) Section 37 (Board of Trade may authorise trolley vehicles) of the Act of 1914 is hereby repealed.

18.—(1) Notwithstanding anything contained in this or any other Act to the contrary the Corporation may on any occasion run and reserve tramcars trolley vehicles and omnibuses for any special purpose which the Corporation may consider necessary or desirable : . . . Power to reserve cars for special purposes.

Provided that—

(a) such tramcars trolley vehicles and omnibuses shall be distinguished from other tramcars trolley vehicles and omnibuses in such manner as may be directed by the Corporation ;

(b) during the running of special tramcars trolley vehicles and omnibuses the Corporation shall maintain a reasonably sufficient ordinary service.

(2) The Corporation may make byelaws for prohibiting the use of any such tramcars trolley vehicles and omnibuses by any persons other than those for whose conveyance the same are reserved.

(3) The restrictions contained in this or any other Act of the Corporation as to tolls fares rates or charges for passengers shall not extend to any tramcars trolley vehicles or omnibuses run under the powers of this section and in respect thereof the Corporation may demand and take such tolls fares rates or charges as they shall think fit.

19. The Corporation may provide cloakrooms and rooms or sheds for the storage of bicycles and other vehicles at any dépôt or building used by them in connection with their tramway trolley vehicle and omnibus undertakings and at any places on the routes of the Corporation tramways or on any trolley vehicle or omnibus route of the Corporation and the Corporation may make charges for the use of such cloakrooms and sheds and for the deposit of articles and things and bicycles and other vehicles therein but shall not use for the purpose any part of the highway without the consent of the road authority. Cloak-rooms &c.

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Power to
require
intending
passengers
to wait in
lines or
queues.

20. For the better regulation of persons desiring to travel in the tramcars trolley vehicles or omnibuses of the Corporation the Corporation may erect and maintain barriers and posts at any stopping place or terminus and for that purpose may with the consent of the road authority use part of the highway and the Corporation may make byelaws requiring persons waiting to enter the tramcars trolley vehicles or omnibuses of the Corporation at any stopping place or terminus to wait in lines or queues and to enter such cars vehicles or omnibuses in the order in which they stood in such line or queue.

Revision of
fares and
charges for
tramways
trolley
vehicles
and omni-
buses.

21. Section 33 (Periodical revision of rates and charges) of the Act of 1900 shall be read and have effect as if the following words at the end of the said section were omitted therefrom namely :—

“ Provided always that the rates and charges prescribed by any such order shall not exceed in amount the rates and charges authorised by this Act ” ;

and the said section as so amended shall apply to the rates and charges which may be demanded and taken in respect of the traffic on the tramways trolley vehicles or omnibuses of the Corporation.

For pro-
tection of
London
Midland
and
Scottish
Railway
Company.

22. The following provisions for the protection of the London Midland and Scottish Railway Company (in this section referred to as “ the company ”) shall apply and have effect except in so far as the same may be otherwise agreed in writing between the Corporation and the company :—

Notwithstanding anything contained in this Act no cloakroom or room or shed for the storage of bicycles and other vehicles barrier or post shall be provided erected or maintained nor shall the Corporation require persons waiting at any stopping place or terminus to wait in any line or queue so as to cause interference with or render less convenient the access to or exit from any station dépôt or property belonging to the company nor shall any such cloakroom shed barrier or post be provided erected or maintained on any bridge carrying any street or road over the railways of the company.

23. Subject to the provisions of the section of this Act of which the marginal note is "Revision of fares and charges for tramways trolley vehicles and omnibuses" the provisions of section 32 (Cheap fares for labouring classes) of the Act of 1900 shall apply to the trolley vehicles authorised by the Act of 1914 and this Act.

A.D. 1925.

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 Cheap fares for labouring classes.

24. The Corporation shall every year within three months after the closing of their financial year or such longer period as the Minister of Transport may allow furnish to the Minister of Transport a copy of the annual accounts of their tramway trolley vehicle and omnibus undertakings.

Accounts to be furnished to Minister of Transport.

25. Section 56 (For protection of Walsall Rural District Council) of the Act of 1914 is hereby repealed.

Repeal of section 56 of Act of 1914.

26. So much of section 59 (For protection of Brownhills Urban District Council) of the Act of 1914 as extends and applies subsection (1) of section 58 (For protection of Cannock Urban District Council) of that Act to the Brownhills Urban District Council is hereby repealed.

Amendment of section 59 of Act of 1914.

27. Section 57 (For protection of Staffordshire County Council) of the Act of 1914 shall as regards any main road or county or main road bridge or approach vested in the Staffordshire County Council extend and apply to the trolley vehicles authorised by and the provision maintenance and running of trolley vehicles under the powers of this Act.

For protection of Staffordshire County Council.

28. The provisions contained in section 57 of the Act of 1914 the marginal note of which is "For protection of Staffordshire County Council" shall mutatis mutandis extend and apply to the Walsall Rural District Council as regards any road or bridge in the rural district of Walsall (not being a road or bridge vested in the county council) over which the trolley vehicles of the Corporation shall run as if such road or bridge had been referred to therein in lieu of main roads or bridges vested in the county council and as if the Walsall Rural District Council had been named therein in lieu of the Staffordshire County Council.

For protection of Walsall Rural District Council.

29. The provisions of section 55 (For protection of company of proprietors of Birmingham Canal Navigations) of the Act of 1914 except subsections (5)

For protection of company of proprietors.

A.D. 1925.
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tors of Bir-
mingham
Canal Navi-
gations.

and (6) of that section shall unless otherwise agreed between the Corporation and the company of proprietors of the Birmingham Canal Navigations apply and have effect with regard to the trolley vehicles and the works and apparatus in connection therewith authorised by this Part of this Act as if the same were trolley vehicles works and apparatus authorised by Part III. (Tramways trolley vehicles and omnibuses) of the Act of 1914.

PART III.

LANDS.

Power to
take lands.

30. Subject to the provisions of this Act the Corporation may enter on take and use—

- (1) For the purposes mentioned in section 154 of the Public Health Act 1875 and for the provision of space for the erection of buildings adjoining or near to any street widened opened enlarged or otherwise improved under the provisions of that section such of the lands in the borough numbered 101 to 118 inclusive 118A and 119 to 123 inclusive on the deposited plans and described in the deposited book of reference as the Corporation may require :
- (2) For the purpose of providing land for a new ring road and for the purpose of providing cricket football lawn tennis and sports grounds and golf courses and the erection of stands pavilions and refreshment rooms thereon and for the purpose of the erection of buildings upon any part of such lands adjoining or near to any street or road such of the lands in the borough numbered 125 to 129 inclusive 129A 133 to 135 inclusive 135A 136 137 137A 137B and 138 to 157 inclusive and 165 to 170 inclusive and 176 to 178 inclusive :
- (3) For the purpose of a site for public slaughter-houses and ancillary purposes so much of the land in the borough numbered 175 on the deposited plans and described in the deposited book of reference as the Corporation may require :

- (4) For the purpose of providing turning spaces for trolley vehicles so much of the lands in the borough numbered 173 and 174 and of the lands in the urban district of Brownhills numbered 171 172 172A 172B and 172C on the deposited plans and described in the deposited book of reference as the Corporation may require. A.D. 1925.

31. If there be any omission mis-statement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Corporation after giving ten days' notice to the owners lessees and occupiers of the land in question may apply to two justices acting for the county of Stafford for the correction thereof and if it appears to the justices that the omission mis-statement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county of Stafford and a duplicate thereof shall also be deposited with the town clerk and such certificate and duplicate respectively shall be kept by such clerk of the peace and town clerk respectively with the other documents to which the same relate and thereupon the deposited plans or deposited book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Corporation to take the lands and execute the works in accordance with such certificate.

Correction of errors in deposited plans and book of reference.

32. For the purposes of determining any question of disputed compensation payable in respect of lands taken under the powers of this Act the tribunal shall not award any sum of money for or in respect of any improvement alteration or building made or for or in respect of any interest in the land created after the fifteenth day of November nineteen hundred and twenty-four if in the opinion of the tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made or created with a view to obtaining or increasing compensation under this Act.

Compensation in case of recently acquired interest.

A.D. 1925.

Period for
compulsory
purchase of
lands.

33. The powers of the Corporation for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Proceeds of
sale of
surplus
lands.

34.—(1) So long as any lands remain to be acquired by the Corporation under the authority of this Act they may so far as they consider necessary apply any capital moneys received by them on the re-sale or exchange of or by leasing any lands acquired under the authority of this Act in the purchase of lands so remaining to be acquired but as to capital moneys so received and not so applied the Corporation shall apply the same in or towards the extinguishment of any loan raised by them under the powers of this Act and such application shall be in addition to and not in substitution for any other mode of extinguishment provided by this Act except to such extent and upon such terms as may be approved by the Minister of Health.

(2) Provided that—

(a) the amount to be applied in the purchase of lands under this section shall not exceed the amount for the time being unexhausted of the borrowing powers conferred by or under this Act for the purpose of such purchase;

(b) the borrowing powers conferred by or under this Act for the purpose of such purchase shall be reduced to the extent of the amount applied in the purchase of lands under the provisions of this section.

Persons
under dis-
ability may
grant ease-
ments &c.

35. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and of this Act grant to the Corporation any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

36. All private rights of way over any lands which shall under the powers of this Part of this Act be acquired compulsorily shall as from the date of such acquisition be extinguished. Provided that the Corporation shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by law with reference to the taking of lands otherwise than by agreement.

A.D. 1925.

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As to private rights of way over lands taken compulsorily.

37. The Corporation may appropriate for building purposes the site of the part of the footway in The Bridge numbered 23 in the borough on the deposited plans and as from the date of such appropriation the Corporation may stop up the said part of the said footway and thereupon all public rights of way over the said part of the said footway shall be extinguished and on the stopping up thereof the site and soil thereof shall vest in the Corporation. Provided that the powers of this section shall not be exercised (except by agreement with the owner of the property in the borough numbered 24 on the deposited plans) unless the Corporation shall have acquired the said property numbered 24.

Appropriation of part of street forming part of The Bridge.

38.—(1) The Corporation notwithstanding that the same may not be immediately required may by agreement purchase or acquire or take on lease and hold any lands which in their opinion it is desirable the Corporation should acquire for or connected with the purposes of any of their undertakings powers or duties or for the benefit improvement or development of the borough and with the consent of the Minister of Health may borrow money for the purchase or acquisition of such lands or for the payment of any capital sum payable under a lease thereof. Any moneys so borrowed shall be repaid within such period as may be prescribed by the Minister of Health.

Further powers for acquisition of land.

(2) When any lands purchased or acquired or taken on lease by the Corporation under this section shall be appropriated to any undertaking or to any of their powers or duties a transfer of the outstanding loan in respect thereof shall be effected to the proper account in the books of the Corporation and pending such appropriation all expenses incurred by the Corporation under this section shall be payable out of the borough fund and borough rate :

[Ch. cxxii.] *Walsall Corporation* [15 & 16 GEO. 5.]
Act, 1925.

A.D. 1925.

— Provided that nothing in this subsection shall authorise the Corporation—

- (a) to create or permit any nuisance on any lands so appropriated;
- (b) to appropriate such lands to any purposes other than purposes for which and subject to the conditions under which they are for the time being authorised to acquire and use lands.

(3) The Corporation may so far as they consider necessary apply subject to the approval of the Minister of Health any capital moneys received by them on the re-sale or exchange of or by leasing any lands acquired under the authority of this section in the purchase of other lands but as to capital moneys so received and not so applied the Corporation shall apply the same either—

- (a) in or towards the extinguishment of any loan raised by them under the powers of this Act such application being in addition to and not in substitution for any other mode of extinguishment of such loan except to such extent and upon such terms as may be approved by the Minister of Health; or
- (b) in such other manner as may be approved by the Minister of Health.

As to purchase of land of London Midland and Scottish Railway Company.

39. Notwithstanding anything contained in this Act or shown on the deposited plans the Corporation shall not without the previous consent in writing of the London Midland and Scottish Railway Company under their common seal purchase or acquire any lands or property of that company except the lands and property edged red on the plan marked "B" signed in quadruplicate by Sir Thomas Robinson the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred (of which plan copies have been deposited in the Parliament Office of the House of Lords and in the Private Bill Office of the House of Commons respectively) and if the Corporation purchase the land numbered 175 on such plan they shall in addition thereto purchase and acquire the land adjoining thereto coloured blue on such plan which land is also the property of the company.

PART IV.

A.D. 1925.

BUILDINGS SEWERS DRAINS AND SANITARY
PROVISIONS.

40.—(1) Section 157 (Power to make byelaws respecting new buildings &c.) of the Public Health Act 1875 is hereby extended so as to enable the Corporation to make byelaws providing in such manner as they may think necessary for the deposit by a person intending to construct a building in a street within the borough of drawings of the elevations of such building (in this section called “elevations”).

Elevation
of new
buildings
fronting
street.

(2) For the purpose of assisting the Corporation in the exercise of the power of approving or disapproving elevations hereinafter conferred a standing advisory committee of three members (in this section called “the advisory committee”) shall be constituted for the borough of whom one member shall be a Fellow of the Royal Institute of British Architects to be nominated by the president of the said institute one member shall be a Fellow of the Surveyors Institution to be nominated by the president of the said institution and one member shall be a justice of the peace to be nominated by the council :

Provided that a member of the council shall be disqualified from being a member of the advisory committee.

(3) Subject as aforesaid the members of the advisory committee shall be appointed by the council and any vacancy occurring on the advisory committee shall be filled by the council on the nomination of the person or body by whom the member causing the vacancy was nominated The Corporation shall pay the members of the advisory committee such reasonable fees and expenses as the Corporation think fit.

(4) Where the elevations of any building proposed to be constructed in any street are required to be submitted to the Corporation by a byelaw made under the said section 157 as extended by this section the Corporation shall within one month after the delivery of the elevations—

(a) approve the elevations; or

(b) if they shall consider that having regard to the general character of the existing buildings in

A.D. 1925.
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the street or of the buildings proposed therein to be erected the building to which the elevations relate would seriously disfigure the street whether by reason of the height of the building or its design or the materials proposed to be used in its construction refer the question of the approval of the elevations to the advisory committee for their decision thereon and the reference shall be accompanied by a statement of the grounds on which the proposed building is considered to be objectionable.

(5) The Corporation shall forthwith send notice in writing to the person by whom the elevations were deposited of their approval thereof or if the building is considered to be objectionable on any of the grounds mentioned in this section of the reference of the elevations to the advisory committee and the notice shall be accompanied by a statement of the objections to the building.

(6) (a) The person by whom the elevations were deposited shall be entitled to send to the advisory committee a statement of his answers to the objections of the Corporation and if he does so he shall at the same time send a copy thereof to the town clerk.

(b) The advisory committee may determine the reference in such manner as they in their discretion shall think fit and they shall within one month after the receipt of the reference decide whether in their opinion the elevations should be approved or disapproved and any such decision shall have effect as if it were an approval or disapproval (as the case may be) of the elevations by the Corporation and in the latter case shall contain a statement of the grounds on which the proposed building is considered to be objectionable.

(7) Every such decision shall forthwith be reported to the Corporation and upon receipt thereof by the Corporation a copy shall forthwith be sent by the Corporation to the person by whom the elevations were deposited.

(8) In the event of a division of opinion among the members of the advisory committee upon reference to them the matter shall be decided by a majority of votes of the members of the committee but save as aforesaid the advisory committee shall act by their whole number.

(9) Where the elevations of a building have been disapproved under this section it shall not be lawful to erect the building until the elevations thereof have been approved by the Corporation and any person who acts in contravention of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding two pounds. A.D. 1925.
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(10) The costs of any reference to the advisory committee shall be paid as the advisory committee may direct. Where such costs or part thereof shall be payable to the person depositing the elevations they shall be recoverable by that person and where such costs or part thereof shall be payable to the Corporation they shall be recoverable by the Corporation and in both cases summarily as a civil debt.

(11) The provisions of this section shall not apply to a building (not being a dwelling-house) belonging to any person or body of persons authorised by virtue of any Act of Parliament or any Order having the force of an Act of Parliament to manufacture gas or to supply electricity or water or to navigate on or use any river canal dock harbour or basin or to demand any tolls or dues in respect of such river canal dock harbour or basin and used or intended to be used exclusively for such purposes under the provisions of such Act of Parliament or Order.

41.—(1) It shall not be lawful for any person to re-construct or alter the course of any drain which communicates or is intended or required to communicate with any public sewer or cesspool or other receptacle for drainage in the borough except in accordance with the enactments and byelaws relating to the drainage of buildings for the time being in force in the borough. Recon-struction of drains to be approved.

(2) Any person offending against this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding five shillings.

42.—(1) It shall not be lawful for any person to alter or repair any drain communicating with any sewer of the Corporation or communicating with any cesspool or other receptacle for drainage in the borough without giving to the Corporation twenty-four hours' previous notice in writing of his intention to do so except in case of emergency and in that case it shall not be lawful for Notice of intention to repair drains.

A.D. 1925. any person to cover over the drain without giving the like notice of his intention to do so.

(2) Free access to such drain or work of repair shall be afforded to the chief sanitary inspector or any officer of the Corporation authorised in writing by him for the purpose of inspection.

(3) Any person who shall offend against this section shall be liable to a penalty not exceeding five pounds.

Regulation
of manu-
facture of
ice-cream.

43.—(1) Any person being a manufacturer or vendor of or merchant or dealer in ice-cream or other similar commodity who—

(a) causes or permits ice-cream or any similar commodity or any materials used in the manufacture thereof to be manufactured sold or stored in any sleeping-room or in any room cellar or place which is in a condition likely to render such commodity injurious to health or in which there is an inlet or opening to a drain; or

(b) in the manufacture sale or storage of any such commodity does any act or thing likely to expose such commodity to infection or contamination or omits to take any proper precaution for the due protection of such commodity from infection or contamination; or

(c) omits on the outbreak of any infectious disease amongst the persons employed in his business or residing in any premises which are used by him for the manufacture of ice-cream or other similar commodity to give notice thereof to the medical officer;

shall be liable for every such offence to a penalty not exceeding forty shillings.

(2) In the event of any person so employed or resident suffering from any infectious disease the medical officer or the sanitary inspector or any other officer who is duly authorised by the Corporation in that behalf may seize and destroy all ice-cream or similar commodity or materials for the manufacture of the same in any of the premises and the Corporation shall compensate the owner of the ice-cream or similar commodity or materials so destroyed. Provided that no compensation

shall be payable in respect of any ice-cream or similar commodity or materials for the manufacture of the same manufactured or brought upon the said premises after such seizure and while any such person is suffering from infectious disease. A.D. 1925.
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(3) Every dealer in ice-cream or other similar commodity vending his wares from any cart barrow or other vehicle or stand or from a pail container or other similar receptacle used without a cart barrow or other vehicle or stand shall have his name and address legibly painted or inscribed on such cart barrow vehicle stand pail container or receptacle and any person who shall fail to comply with this subsection shall be liable to a penalty not exceeding forty shillings.

(4) (a) The medical officer and the sanitary inspector and any other officer duly authorised by the Corporation in that behalf shall at all reasonable times have the same power of entry into and inspection of the premises of any manufacturer or vendor of or merchant or dealer in ice-cream or other similar commodity for the purpose of inspecting such premises and the materials or commodities or articles of food therein and any cart barrow stand pail container or receptacle in from or on which the same are offered for sale as an officer of the Corporation would have under section 102 (Power of entry of local authority) of the Public Health Act 1875 in the cases therein mentioned.

(b) Any person refusing entry into or inspection of such premises as aforesaid or refusing inspection of the materials or commodities or articles of food therein or obstructing such officer as aforesaid in the execution of his duty shall be liable to a penalty not exceeding five pounds.

(5) Public notice of this section shall be given forthwith after the passing of this Act by advertisement in two newspapers published or circulating in the borough and by a notice affixed outside the town hall and by the distribution of hand bills amongst persons affected or likely to be affected so far as such persons can reasonably be ascertained.

(6) The production of copies of the newspapers containing the advertisement shall be sufficient evidence that the provisions of this section so far as they relate

A.D. 1925. to advertisements in newspapers have been complied with and the production of a certificate purporting to be signed by an officer or servant of the Corporation that the notice required by this section has been affixed outside the town hall and that handbills have been distributed amongst persons affected or likely to be affected so far as such persons could reasonably be ascertained shall be sufficient evidence that the other provisions of this section have been complied with.

Byelaws as
to food.

44.—(1) The Corporation may make byelaws for promoting and securing sanitary and cleanly conditions in the manufacture preparation storage transport or exposure for sale of any article intended to be sold for the food of man.

(2) The word “food” in this section shall include every article used for food or drink by man other than drugs or water and any article which ordinarily enters into or is used in the composition or preparation of human food and shall also include flavouring matters and condiments.

(3) (a) Before making any such byelaws so far as they relate to meat as in this section defined the Corporation shall give not less than one month’s notice to the Walsall Master Butchers’ Association of the Corporation’s intention to make such byelaws and such notice shall be accompanied by a copy of the draft byelaws and the Corporation shall confer with the said association thereon before they submit the same to the Minister of Health for confirmation and such association shall be entitled to make representations to the Minister of Health with regard thereto. The word “meat” in this subsection means the flesh of cattle swine sheep or goats including bacon and ham and edible offal and fat which is sold or intended for sale for human consumption.

(b) Before making any byelaw applicable to the storage or transport of any article by the London Midland and Scottish Railway Company at to or from any railway station or depôt of such company the Corporation shall give not less than one month’s notice to the company of their intention to make such byelaws and such notice shall be accompanied by a copy of the draft byelaws and the company shall be entitled to make representations to the Minister of Health with regard thereto.

(4) Before confirming any byelaws made under this section as regards any business carried on in any factory or workshop to which the Factory and Workshop Acts 1901 to 1920 apply the Minister of Health shall consult the Secretary of State. A.D. 1925.
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(5) The medical officer and the sanitary inspector and any other officer duly authorised by the Corporation in that behalf shall be entitled at all reasonable times to enter into and inspect any premises on which he suspects that there is any contravention of a byelaw made under this section and any person refusing such entry or inspection or obstructing any such officer as aforesaid in the execution of his duty shall be liable to a penalty not exceeding forty shillings.

45.—(1) (a) The Corporation may by written notice to the owner and occupier of any registered slaughter-house in the borough which from its situation or construction is in the opinion of the Corporation a nuisance or injurious or dangerous to the public health require that the premises shall cease to be used as a slaughter-house on and after such date (not being less than six months from the service of such notice) as may be specified in the notice and no person shall after such date slaughter in the way of trade any cattle horse sheep or pig on the said premises. Power to close slaughter-houses if injurious to public health.

(b) Provided that not less than three months before making any such requirement in the case of any slaughter-house which from its situation or construction is in their opinion a nuisance or injurious or dangerous to the public health the Corporation shall give notice in writing to the owner or occupier thereof specifying the respects in which such slaughter-house is in their opinion a nuisance or so injurious or dangerous and also specifying their requirements with regard thereto and if within the said period of three months the owner or occupier of such slaughter-house or either of them shall have removed the grounds of objection thereto no such written notice as is first above mentioned shall be given to them by the Corporation.

(c) Provided also that any such owner or occupier may within one month after receiving any such notice in writing from the Corporation object thereto on the ground

A.D. 1925. that the requirements contained therein are unreasonable and unnecessary in the public interests or the interests of public health and any such objection shall failing agreement between the Corporation and the owner or occupier making the same be determined on appeal to the Minister of Health by that Minister and unless and until that Minister shall have determined that the said requirements are reasonable and necessary no such written notice as is first above mentioned shall be given to the owner or occupier of the slaughter-house in question.

(2) The Corporation shall make compensation to the owner and occupier of any registered slaughter-house who shall be injuriously affected by any requirement of the Corporation under subsection (1) of this section such compensation in case of difference to be settled in manner provided by the Public Health Act 1875 Provided always that in the case of a slaughter-house which is defective or otherwise open to objection on sanitary grounds the arbitrator shall have regard thereto in settling the amount of compensation (if any) which shall be awarded in pursuance of this section.

(3) If any person acts in contravention of the provisions of subsection (1) of this section he shall be liable for each offence to a penalty not exceeding five pounds.

Saving for
London
Midland
and
Scottish
Railway
Company.

46. Nothing in the sections of this Part of this Act whereof the marginal notes are—

Elevation of new buildings fronting street;

Reconstruction of drains to be approved;

Notice of intention to repair drains;

shall extend or apply to any building (not being a dwelling-house) railway or work constructed by or belonging to or which may hereafter be constructed by or belong to the London Midland and Scottish Railway Company in the exercise of their statutory powers or to any lands held or acquired or which may hereafter be held or acquired by such company and used for the purposes (other than for a dwelling-house) of their undertaking with the authority of Parliament.

PART V.

A.D. 1925.

RECREATION GROUNDS &c.

47. The Corporation may subject to the approval of the Minister of Health appropriate any lands belonging to them for the purposes of a municipal golf course and (in addition to the lands shown on the deposited plans which they are authorised to purchase for the purpose) may by agreement purchase or acquire or take on lease and hold and use for the purposes of golf courses and for the purposes of the section of this Act of which the marginal note is "Power to provide grounds for games &c." and sell or let on lease or otherwise to any club company body or person such lands as may be necessary or expedient for those purposes and may upon any such lands form alter maintain or regulate manage and use golf courses with all proper and convenient houses pavilions works buildings and conveniences and may make such charges for the use thereof or may let the same as they think fit Provided that the public shall be entitled to use any golf course belonging to and managed by the Corporation on payment of such reasonable charges as the Corporation may prescribe.

Power to
establish
golf courses
&c.

48. Subject to the provisions of this Act and subject as regards any land leased to the Corporation to the terms of such lease the Corporation may—

Power to
provide
grounds
for games
&c.

- (a) On any lands in the borough of which for the time being they may be the owners or lessees and which they may desire to lay out as a sports ground erect and construct and hold furnish equip maintain insure and carry on pavilions stands refreshment rooms and other buildings :
- (b) On any such lands as aforesaid lay out and maintain lawns grounds and courses for games and provide the necessary apparatus for the use of the same and do all such acts and employ such persons as may be required for those purposes.

49. Subject to the provisions of this Act—

Provision
of enter-
tainments.

- (1) The Corporation may provide or arrange for the provision or carrying on of concerts and

A.D. 1925.

other musical recitals entertainments broadcasting stations sports athletic meetings carnivals exhibitions and amusements and for the sale of refreshments in any buildings belonging to them or in any park or recreation ground for the time being vested in them or under their control or upon any land for the time being belonging or leased to them and the Corporation may let any such building belonging to them or any part of such park or recreation ground or land as aforesaid or any building or part thereof erected in any such park or recreation ground or on any such land for the purposes of such concerts recitals entertainments broadcasting stations sports athletic meetings carnivals exhibitions or amusements or for the sale of refreshments for such periods or occasions and upon such terms and conditions as the Corporation may think fit :

Provided that any letting under this section of any building for the purpose of an entertainment other than for a period of less than one month shall be by tender and the Corporation shall secure the best rent reasonably obtainable :

- (2) The Corporation may in any park or recreation ground or promenade vested in them or upon any such land as aforesaid enclose an area for the purpose of any such concert or other entertainment as aforesaid :
- (3) Any expenses incurred by the Corporation under the provisions of this section may be paid by the Corporation out of the borough fund :

Provided always that the net amount of any payments or expenses made and incurred by the Corporation under the provisions of this section and of the sections of this Act of which the marginal notes are " Programmes " and " Power to advertise entertainments and attractions " after deducting any moneys received by them under the provisions of this section or of the said section of which the

marginal note is " Programmes " shall not in any one year exceed a sum equivalent to that which would be produced by a rate of one penny in the pound levied on property in the borough assessable in that year to the borough rate :

A.D. 1925.

—

- (4) The Corporation shall not under this section establish any wireless telegraph station or instal or work any apparatus for wireless telegraphy in contravention of the Wireless Telegraphy Act 1904 or any statutory re-enactment or modification of the said Act.

50. The existing power of the Corporation of making byelaws for securing good and orderly conduct in their parks and recreation grounds shall extend to the making of byelaws for securing good and orderly conduct during any concert recital entertainment exhibition or amusement provided or carried on in pursuance of the provisions of this Part of this Act and also for regulating the use of any bowling greens lawn tennis courts and croquet lawns provided by them under the provisions of this Part of this Act.

Power to
make
byelaws.

51. The Corporation may make such reasonable charges as they may think fit for admission to and for the use of any sports grounds and any buildings belonging to them (including any swimming bath while closed as such under the provisions of any Act relating to the Corporation) or for the use of any buildings or enclosures in any park recreation ground or land used for the purposes mentioned in this Part of this Act or for the use of any bowling greens lawn tennis courts croquet lawns grounds and courses for games and apparatus provided in connection therewith respectively and they may also make such charge for the use of chairs and conveniences as they may deem fit.

Power to
charge for
admission
to and
use of
concert
halls &c.

52. The Corporation may adapt land acquired by them under the powers of the section of this Act of which the marginal note is " Power to establish golf courses &c." for athletic meetings cricket football bowls lawn tennis and other games and may from time to time let for terms not exceeding twelve months to any club company body or persons any portion of any park or place of public resort or recreation set apart by them under

Power to
let recrea-
tion grounds
&c. to
cricket
clubs &c.

A.D. 1925. the provisions of the Public Health Acts Amendment Act 1907 or the whole or any portion of any land purchased taken on lease or acquired by them under the powers of this Part of this Act and may upon such lands or upon the portions of parks or places of public resort or recreation so set apart erect construct and maintain all proper and convenient houses pavilions dressing rooms and other buildings works and conveniences Provided that the Corporation shall not so let more than one half of the total area of their parks and recreation grounds at any one time.

Pro-
grammes. **53.** The Corporation may provide programmes of any concert entertainment athletic meeting exhibition or performance which may from time to time be provided by the Corporation or with their sanction in any such place or building as aforesaid and may sell such programmes or they may authorise any person or persons to provide and sell such programmes.

Power to
advertise
entertain-
ments and
attractions. **54.** The Corporation may in any year pay or contribute towards the cost of providing and maintaining at public places in the borough and on tramcars trolley vehicles and omnibuses plying in the borough or between the borough and other places and in newspapers published in the county of Stafford advertisements of the performances and entertainments provided at their concert halls pavilions conservatories winter gardens bandstands and other buildings.

Power to
appoint
officers. **55.**—(1) The Corporation may appoint officers for securing the observance of this Part of this Act and of the provisions of all other Acts relating to parks and pleasure grounds and of the byelaws and regulations made thereunder and may procure such officers to be sworn in as constables for that purpose but any such officer shall not act as a constable unless in uniform or provided with a warrant.

(2) Nothing in this section shall be deemed to render applicable to any such park-keeper the provisions of the Police Pensions Act 1921 or any other enactments relating to pensions gratuities and allowances in respect of police service.

As to
receipts **56.** All moneys from time to time received by the Corporation in respect of the exercise of their powers

under this Part of this Act (including the interest on any reserve fund established by them in respect of the exercise of such powers which reserve fund they are hereby authorised to establish) shall be carried to and shall form part of the borough fund and all payments and expenses made and incurred in respect of the exercise of those powers shall be paid out of the borough fund and the borough rate. A.D. 1925.
—
and
expenses.

57. Notwithstanding the covenants conditions and restrictions contained in the deed of conveyance dated the thirteenth day of February eighteen hundred and eighty-five and made between the Right Honourable Orlando George Charles Earl of Bradford of the one part and the Corporation of the other part the Corporation may appropriate hold and use for any public purpose for which the Corporation may require to use the same or may sell or grant leases of the part of Reedswood Park coloured pink on the plan marked C signed in triplicate by Sir Thomas Robinson the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred of which one copy has been deposited in the Parliament Office of the House of Lords and another copy in the Private Bill Office of the House of Commons but nothing herein contained shall enable the Corporation to use the said lands for any purpose which may be or become offensive or a nuisance to persons using Reedswood Park or to the immediate neighbourhood. Discon-
tinuance
of part of
Reedswood
Park as a
park.

PART VI.

RATING PROVISIONS.

58.—(1) This Part of this Act shall come into operation on the thirty-first day of March nineteen hundred and twenty-six. Commence-
ment and
interpre-
tation.

(2) In this Part of this Act unless the subject or context otherwise requires :—

“The parish” means the parish of Walsall;

“The overseers” means the overseers of the parish;

“The poor rate” means the poor rates of the parish;

“The consolidated rate” means the poor rate as by this Part of this Act authorised to be levied and collected.

A.D. 1925.

—
Council to
be over-
seers.

59.—(1) (a) Notwithstanding anything to the contrary contained in any Act or order from and after the commencement of this Part of this Act the council shall be the overseers and all powers duties and liabilities exerciseable by or attaching to overseers shall be exerciseable by and extend and apply to the council acting as overseers :

Provided that—

- (i) Any person designated by the Corporation as hereinafter mentioned to perform duties in relation to the preparation of the jurors' book and the register of electors shall have the powers and duties and be subject to the liabilities of overseers under the enactments relating to those subjects;
 - (ii) In the application to the parish of section 54 of the Poor Law Amendment Act 1834 the said section shall be read and construed as if for the references therein to any overseer there were substituted references to any guardian representing any ward of the parish;
 - (iii) In the application to the parish of sections 13 to 16 and section 20 of the Lunacy Act 1890 and section 2 of the Lunacy Act 1891 the said sections shall be read and construed as if references therein to an overseer had been omitted therefrom;
 - (iv) The town clerk shall have the powers and duties and be subject to the liabilities of an overseer or overseers with respect to the matters specified in the Second Schedule to this Act and any other powers and duties of an overseer or overseers with respect to matters similar in character to the matters specified in the said Second Schedule which may be transferred to the town clerk by order of the Minister of Health who is hereby empowered to make any such order accordingly.
- (b) The overseers of the parish shall go out of office at the commencement of this Part of this Act.
- (c) Separate accounts shall be kept of the transactions of the council acting as overseers and the enactments relating to the audit of the accounts of overseers shall apply to such separate accounts.

(2) (a) After the thirty-first day of March nineteen hundred and twenty-six every precept issued by the guardians of the Walsall Union for the purpose of obtaining money which is ultimately to be raised by the council acting as overseers out of the consolidated rate to be raised within the borough under the provisions of this Act shall be sent to the council at their office addressed to the council or the town clerk. A.D. 1925.

(b) Any document required to be signed by the overseers may be signed by the town clerk.

(3) References in any Act to the overseers shall be construed as references to the council and the legal interest in all property vested in the overseers (other than property connected with the affairs of the church or held for an ecclesiastical charity within the meaning of the Local Government Act 1894) shall vest in the council.

(4) Where the overseers as such are either alone or jointly with any other persons trustees of any parochial charity such number of members of the council or other persons not exceeding the number of the overseer trustees as the council may appoint shall be trustees in their place. The term of office of a trustee so appointed shall be four years.

60. On the commencement of this Part of this Act all and every right custom privilege or power other than in matters ecclesiastical and in relation to ecclesiastical charities within the meaning of the Local Government Act 1894 vested in or exerciseable by the parishioners ratepayers or inhabitants in vestry assembled of the parish shall cease to be so vested or exerciseable and every such right custom privilege or power shall for and within the parish be vested in and exerciseable by the Corporation. Transfer to Corporation of powers of vestry.

61.—(1) The council may appoint and remove such officers as they deem necessary to assist in the discharge of the duties of overseers and may fix the remuneration to be paid to such officers. Appointment of assistant overseers and other officers.

(2) The registration officer may before the preparation of the autumn register in any year require the Corporation to designate one or more of the assistant overseers or other officers appointed under this section to perform the duties of overseers in relation to the preparation of the jurors' book and register of electors

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A.D. 1925. in that year and the Corporation shall forthwith comply with any such requirement of the registration officer. The remuneration of or expenses incurred by any such officer in respect of the performance of such duties shall continue to be payable in accordance with the provisions of the enactments relating to these subjects.

(3) (a) Any assistant overseer appointed by the council and all officers appointed or to be appointed by the council to assist in the discharge of the duties of overseers shall give such security to the Corporation for the due performance of their duties as may be required by the Corporation and the district auditor appointed by the Minister of Health shall report thereon annually to the Corporation and such securities shall be deposited with the Corporation and not with the board of guardians of the Walsall Union.

(b) Assistant overseers appointed by the council shall not be required to give security to the guardians of the Walsall Union under section 61 of the Poor Law Amendment Act 1844.

(4) Any person holding at the commencement of this Part of this Act the office of assistant overseer for the parish shall (subject to the provisions of this section) after the commencement of this Part of this Act become an officer of the Corporation acting by the council as overseers.

(5) The Corporation may abolish the office or situation of any person holding the office of assistant overseer which they deem unnecessary and any such person required to perform duties such as are not analogous or which are an unreasonable addition to those which he was required to perform may relinquish his office or situation.

(6) Every person whose office or situation is so abolished or who so relinquishes his office or situation or whose services are dispensed with on the ground that they are not required or for any reason not being on account of any misconduct or incapacity or whose salary wages or remuneration are reduced on the ground that his duties have been diminished or who otherwise suffers any direct pecuniary loss by reason of the provisions of this section shall be entitled to be paid compensation for such pecuniary loss to be determined and paid by the

Corporation subject to appeal to the Minister of Health in accordance with the provisions contained in section 120 of the Local Government Act 1888 relating to compensation to existing officers and those provisions shall apply accordingly as if they were herein re-enacted with the necessary modifications : A.D. 1925.
—

Provided that the expression in subsection (1) of section 120 of the Local Government Act 1888 "the Acts and rules relating to Her Majesty's Civil Service" shall mean the Acts and rules relating to His Majesty's Civil Service which were in operation at the date of the passing of the Local Government Act 1888 and that in the said section the Minister of Health shall be substituted for the Treasury.

62.—(1) All expenses of the Corporation which if this Act had not been passed would have been payable out of and all rates charges damages penalties and other moneys which if this Act had not been passed would have been paid or carried to the credit of the district fund and general district rate or either of them shall be charged on and defrayed out of or paid and carried to the credit of the borough fund and the borough rate and in any case for which no specific provision is made in this Act any reference to the district fund or general district rate in any Act or Provisional Order in force in the borough or in any mortgage of or charge on such fund or rate granted by the Corporation in pursuance of the provisions of any such Act or Order shall be deemed to be a reference to the borough fund and the borough rate. Expenses to be paid out of borough fund.

(2) The district fund shall be closed and any balance which at the commencement of this Part of this Act is standing to the credit or to the debit of the district fund or the general district rate respectively shall from and after that date be transferred to the credit or the debit (as the case may be) of the borough fund and any moneys owing to the Corporation in respect of or in connection with the district fund or the general district rate shall notwithstanding the provisions of this Act continue to be payable to and recoverable by the Corporation as if this Act had not been passed and when received by the Corporation shall be carried to the credit of the borough fund.

(3) The Corporation may make and levy any borough rate prospectively in order to raise money to pay charges

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A.D. 1925. and expenses to be incurred thereafter or retrospectively
 ——— in order to raise money to pay charges and expenses
 already incurred.

(4) Section 53 of the Walsall Gas Purchase and
 Borough Extension Act 1876 and sections 211 212 and 213
 of the Act of 1890 are hereby repealed.

Contribu-
 tion to
 borough
 rate to be
 paid out of
 poor rate.

63. The contribution of the parish to the borough
 rate shall be paid by the overseers out of the poor rate to
 be made for the parish and the provisions of section 145
 (Collection of borough rate in undivided parish) of the
 Municipal Corporations Act 1882 shall apply to such
 contribution.

Poor rate
 to be called
 "the con-
 solidated
 rate."

64. The poor rate (inclusive of the contributions to
 the borough fund levied in pursuance of the provisions
 of this Act) shall be called "the consolidated rate" but
 except as expressly provided by this Act that rate shall
 be subject to all Acts passed and to be passed relating
 to the poor rate and be made assessed levied and
 recovered as the poor rate.

Differential
 rating in
 certain
 cases.

65. The provisions contained in this section shall
 have effect with respect to the consolidated rate to be
 made and levied by the overseers (that is to say):—

(1) The owner of any tithes or any tithe commutation
 rentcharge or the occupier of any land used as
 arable meadow or pasture ground only or as
 woodlands allotments orchards market gardens
 or nursery grounds and the occupier of any land
 covered with water or used only as a canal or
 towing path for the same or as a railway con-
 structed under the powers of any Act of Parlia-
 ment for public conveyance shall be assessed to
 the consolidated rate in respect of such heredita-
 ments on the full rateable value thereof but
 (subject as next hereinafter provided) shall be
 liable to pay in each year in respect of such
 hereditaments a rate calculated on the basis of
 seventy-three and a half per centum only of the
 amount in the pound of the rate payable in
 respect of hereditaments not within the pro-
 visions of this section :

(2) Provided that during the continuance of the
 Tithe Rentcharge (Rates) Act 1899 such Act shall

have effect within the borough as if the following provision were substituted for section 1 thereof (that is to say):—

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—

“The owner of tithe rentcharge attached to a benefice shall be liable to pay only fifty-six per centum of the amount payable under subsection (1) of the section of the Walsall Corporation Act 1925 of which the marginal note is ‘Differential rating in certain cases’ in respect of any rate which is assessed on him as owner of that tithe rentcharge and the remaining forty-four per centum thereof shall on demand being made by the collector of the rate on the surveyor of taxes for the borough or any district therein be paid by the Commissioners of Inland Revenue out of the sums payable by them to the local taxation account on account of the estate duty grant”:

(3) Provided also that—

(a) during the continuance of the Agricultural Rates Acts 1896 and 1923 the occupier of any agricultural land as defined in the Agricultural Rates Act 1896 shall be liable to pay in each year in respect of such land a rate calculated on the basis of twenty-five per centum only of the amount in the pound of the rate payable in respect of hereditaments not within the provisions of this section;

(b) if the Agricultural Rates Act 1923 shall expire before the expiration of the Agricultural Rates Act 1896 “forty-one per centum” shall during the continuance of the latter Act be substituted for “twenty-five per centum” in paragraph (a) of this subsection:

(4) Nothing in this section shall in any way affect—

(a) the share of the annual grant payable under the Agricultural Rates Act 1896 to any spending authority or save as expressly provided in this Act the operation of that Act; or

(b) the operation of the Agricultural Rates Act 1923 or the power of the Minister of

A.D. 1925.

Health to estimate as respects each half-year after the commencement of this Part of this Act the amount of the deficiency which would have arisen by reason of section 1 of that Act if this Act had not been passed in the produce of any rate for the purpose of the issue from the local taxation account of the share of any spending authority in the additional annual grant under the Agricultural Rates Act 1923; or

(c) the operation of the Ecclesiastical Tithe Rentcharges (Rates) Acts 1920 and 1922; or

(d) the amount of the contribution for any purposes to be made by the parish out of the poor rate :

- (5) If any occupier referred to in subsection (1) of this section claims that in respect of any rate made or levied he is not receiving the full benefit to which he is entitled under the said subsection he may appeal to the next court of quarter sessions for the borough holden not less than twenty-one days after the demand of the rate and according to the provisions of the Summary Jurisdiction Acts but no such appeal shall be entertained by such quarter sessions unless fourteen days' notice in writing of such appeal and of the ground thereof shall have been given by the appellant to the Corporation.

On appeals under this subsection the court to which such appeal shall be made shall have power to determine the amount payable by the occupier in respect of such rate and to award costs between the parties to the appeal.

Form of
rate &c.
to be
prescribed
by Minister
of Health.

66. The consolidated rate and the demand note and any other necessary documents to be used for the purposes of or in connection with the consolidated rate shall be in such form as the Minister of Health may from time to time prescribe.

Application of
section 133 of
Lands Clauses
Consolidation
Act 1845.

67. For the purposes of section 133 (Until completion of works promoters shall make good any deficiency of land tax and poor's rate caused by lands being taken) of the Lands Clauses Consolidation Act 1845 the poor's rate

shall be deemed to be one-half of the amount in the pound of the consolidated rate. A.D. 1925.

68. No warrant of commitment in respect of non-payment of the consolidated rate shall be issued against any person who shall satisfy the court that his failure to pay the said rate is due to circumstances over which he had or has no control and that he has not divested himself of means for the purpose of evading payment of the said rate. As to recovery of consolidated rate.

69. Section 267 (Service of notices) of the Public Health Act 1875 shall apply to any demand for the consolidated rate to be served by the overseers and to any demand account or notice in respect of the gas electricity or other undertakings of the Corporation or any of them served by the Corporation. Service of demand.

70.—(1) Subject to the provisions of this section every consolidated rate shall be made in respect of a period commencing immediately after the expiration of the last preceding period in respect of which a consolidated rate was made and terminating on such date to be specified in the rate as may be fixed by the rating authorities and in the case of the last rate made in any financial year the date so fixed shall be the last day of that year. Operation of rate.

(2) The amount charged by a consolidated rate in respect of any hereditament shall be due from the person who is in occupation of that hereditament during the period in respect of which the rate is made :

Provided that if any person is in occupation of any hereditament for part only of any period in respect of which the rate is made the amount due from that person shall be an amount which bears the same proportion to the total amount charged by the rate in respect of that hereditament as the number of days during which that person is in occupation bears to the number of days comprised in the period in respect of which the rate is made.

71.—(1) The overseers may by notice in writing require the owner or occupier or reputed owner or occupier of any hereditament in the parish (other than land used as arable meadow or pasture ground only or as woodlands) to send to them a return in writing in the Overseers may require returns.

A.D. 1925. form set forth in the Third Schedule to this Act and
— containing the particulars therein mentioned or referred
to :

Provided that (except for purposes connected with the preparation of and preliminary to a general re-valuation for rating) the powers conferred by this section shall only be exercised—

- (a) upon any change in the occupation or ownership of any hereditament; or
- (b) upon any change in the nature or use of any hereditament whether by way of addition to or adaptation of premises or otherwise such as may affect the value of the hereditament; or
- (c) in the case of any hereditament in respect of which the overseers are of opinion that special circumstances exist which make it desirable that a return should be rendered in accordance with the provisions of this section.

(2) Any person who wilfully refuses or neglects to make a return lawfully required under this section within twenty-one days after receipt of such notice as aforesaid shall be liable on summary conviction to a penalty not exceeding five pounds and to a daily penalty not exceeding two pounds and any person who wilfully makes or causes to be made a false return shall be liable to a penalty not exceeding ten pounds.

(3) The overseers shall whenever required by the assessment committee of the Walsall Poor Law Union produce from time to time to such committee the returns or any of them obtained by the overseers under the provisions of this section.

(4) Nothing in this section shall require a railway company to include in any return which they may be required to send to the overseers particulars with respect to their running lines sidings or stations or any hereditaments therein.

Amendment
of consoli-
dated rate.

72. In addition and without prejudice to any other powers which may be exercised by them the overseers may amend the consolidated rate of the parish by inserting therein the name of any person claiming or entitled to have his name inserted or by inserting the name of any person who ought to have been rated or

by striking out the name of any person who ought not to have been assessed or by raising or reducing the sum at which any person has been assessed if it appears to the overseers that he has been under-rated or over-rated or by making any other alteration which would make the rate conformable to the provisions of this Act and no such amendment shall be held to avoid the rate : A.D. 1925.

Provided that—

- (1) Any person who may feel himself aggrieved by any such amendment shall have the same right of appeal therefrom as he would have had if the matter of amendment had appeared on the rate originally made and with respect to him an amended rate shall be considered to have been made at the time when he first received notice of the amendment :
- (2) An amended rate shall not be payable by any person the amount of whose rate is increased by the amendment or whose name is thereby newly inserted until seven days after such notice has been given to him.

73. The purposes to which the borough fund is applicable shall include the provision of a working balance for the payment of current expenses that may be incurred by the Corporation in the exercise or performance of the powers and duties the cost of which is charged on the borough fund and the Corporation may (in estimating the amount sufficient for those purposes and in ordering the borough rate to be made) include such a sum as they may consider to be necessary for the provision of such working balance. Borough rate may include working balance.

PART VII.

FINANCE AND MISCELLANEOUS.

74.—(1) The Corporation may from time to time independently of any other borrowing power borrow at interest for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and in order to secure the repayment thereof and the payment of interest thereon they may mortgage or charge the Power to borrow.

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A.D. 1925. respective revenues fund and rate mentioned in the third column of the said table and they shall pay off all moneys so borrowed within the respective periods (each of which is in this Act referred to as "the prescribed period") mentioned in the fourth column thereof (namely):—

1	2	3	4
Purpose.	Amount.	Charge.	Period of Repayment.
(a) For the provision of trolley vehicles.	£ 42,500	The revenue of the tramway undertaking and the borough fund and borough rate.	Ten years from the date or dates of borrowing.
(b) For the electrical equipment and the construction of works necessary for working trolley vehicles.	21,500	The revenue of the tramway undertaking and the borough fund and borough rate.	Twenty years from the date or dates of borrowing.
(c) For the erection of buildings for the purpose of trolley vehicles.	3,500	The revenue of the tramway undertaking the borough fund and borough rate.	Forty years from the date or dates of borrowing.
(d) For reconstruction and reinstatement of roads on certain trolley vehicle routes.	24,000	The revenue of the tramway undertaking the borough fund and borough rate.	Thirty years from the date or dates of borrowing.
(e) For and in connection with the purchase of land.	39,000	The borough fund and borough rate.	Sixty years from the date or dates of borrowing.
(f) For paying the costs charges and expenses of this Act.	The sum requisite.	The borough fund and borough rate.	Five years from the passing of this Act.

(2) (a) The Corporation may also with the consent of the Minister of Health borrow such money as may be necessary for any of the purposes of this Act (including the provision of a working balance for the borough fund) other than the purposes of Part II. (Trolley vehicles

tramways and omnibuses) and may with the consent of the Minister of Transport borrow such further money as may be necessary for any of the purposes of that Part of this Act. A.D. 1925.

(b) Any money borrowed under this subsection shall be repaid within such period as may be prescribed by the Minister with whose consent it is borrowed and that period shall be the prescribed period for the purposes of the enactments incorporated herewith.

(c) In order to secure the repayment of any money borrowed under this subsection and the payment of interest thereon the Corporation may mortgage or charge such revenue fund or rate as may be prescribed by the Minister with whose consent such money is borrowed.

(3) The provisions of this section prescribing the revenue funds or rates which may be mortgaged or charged shall not limit the powers conferred upon the Corporation by section 22 (Power to use one form of mortgage for all purposes) of the Act of 1919.

75. The following provisions of the Act of 1900 and the Act of 1919 are incorporated with this Act and shall extend and apply thereto as if those sections with any necessary modifications were set out in this Act namely :—

Incorporation of financial provisions of Acts of 1900 and 1919.

The Act of 1900—

Section 58 (Certain regulations of Public Health Act 1875 as to borrowing not to apply);

Section 59 (Mode of raising money);

Section 62 (Mode of payment off of money borrowed);

Section 63 (Sinking fund);

Section 65 (Protection of lender from inquiry);

Section 66 (Corporation not to regard trusts);

Section 67 (Appointment of receiver);

Section 71 (Application of money borrowed);

Section 72 (Expenses of execution of Act);

Section 73 (Separate accounts to be kept and audited).

The Act of 1919—

Section 20 (Provisions of Public Health Act 1875 as to mortgages to apply);

A.D. 1925.

—
Return to
Minister of
Health
with
respect to
repayment
of debt.

76.—(1) The town clerk shall if and when he is requested by the Minister of Health so to do transmit to the Minister a return showing the provision made for the repayment of any loans raised by the Corporation under any statutory borrowing power.

(2) The return shall show such particulars and shall be made up to such date and in such form as the Minister may require and shall if so required by him be verified by statutory declaration of the borough treasurer or other the chief accounting officer of the Corporation and shall be transmitted within one month after the making of the request and in the event of his failing to make such return the town clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by the Minister in a court of summary jurisdiction and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(3) If it appears to the Minister by such a return as aforesaid or otherwise that the Corporation have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by any enactment relating to the statutory borrowing power or by the Minister in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purpose other than those authorised the Minister may by order direct that the sum in such order mentioned not exceeding the amount in respect of which default has been made shall be paid or applied in the manner and by the date in such order mentioned and the Corporation shall notify the Minister as soon as the order is complied with and any such order shall be enforceable by writ of mandamus to be obtained by the Minister out of the High Court.

(4) Any provision of any enactment now in force in the borough requiring an annual return to be made to the Minister with regard to the repayment of debt is hereby repealed.

Investment
of and pay-
ments into
sinking
fund.

77. When under the provisions of this Act or of any Act of Parliament or of any Order confirmed by or having the effect of an Act of Parliament whether passed con-

firmed or made before or after the passing of this Act the Corporation are empowered or required to form a sinking fund or loans fund the following provisions shall have effect with respect to the appropriate yearly sums and accumulations thereof required to be set apart for or paid into such sinking fund or loans fund for the purpose of providing for the repayment of moneys borrowed by the Corporation that is to say :—

A.D. 1925.

- (1) The Corporation may (in addition to any other powers for the time being vested in them) invest the said yearly sums and accumulations in statutory securities :
- (2) The accumulations of the said yearly sums shall be paid and provided out of the borough fund and borough rate and any interest dividends and annual proceeds arising from the investment of the said yearly sums and the accumulations thereof (including such yearly sums and accumulations thereof as may have been provided prior to the passing of this Act) shall be paid into the borough fund.

78.—(1) Notwithstanding anything contained in the Public Health Acts Amendment Act 1890 or in any other Act or order on or after the thirty-first day of March nineteen hundred and twenty-six the Corporation may if they think fit establish a fund to be called “the consolidated loans fund” to which shall be paid as and when they are received—

Consolidated loans fund.

- (a) All moneys borrowed by the Corporation whether by issue of stock or other security together with any moneys temporarily borrowed without security in connection with the exercise of statutory borrowing powers ;
- (b) All moneys of a capital nature received by the Corporation whether from the sale of capital assets or otherwise except such as are applied by the Corporation with due authority to another capital purpose ; and
- (c) The appropriate sums provided in each year out of other funds of the Corporation to comply with the terms and conditions as to repayment attaching to their several borrowing powers :

A.D. 1925. — And there shall also be carried to the credit of the consolidated loans fund the unapplied balances of all moneys borrowed or received except such moneys as have been borrowed from the Public Works Loan Commissioners and of all sums provided by the Corporation as aforesaid before the thirty-first day of March nineteen hundred and twenty-six.

(2) The moneys of the consolidated loans fund shall be used or applied by the Corporation—

- (a) in the exercise of any statutory borrowing power by transfer of the required amount to the appropriate fund and account of the Corporation; or
- (b) in the redemption of stock or any other securities issued by the Corporation the purchase of stock for extinction or the repayment of any moneys borrowed by the Corporation;
- (c) for any other purpose which may be approved by the Minister of Health:

And any moneys of the consolidated loans fund not used or applied in these ways may be invested in statutory securities and the sums realised by the sale of such securities shall be repaid on receipt to the consolidated loans fund and the moneys of the consolidated loans fund shall not be used or applied otherwise than as provided in this subsection.

(3) Subject to any priority existing at the passing of this Act all stock of and loans to the Corporation and the dividends and interest thereon shall be charged indifferently on all the revenues of the Corporation and shall rank equally one with the other without any priority whatsoever.

(4) Save as in this section expressly provided all the obligations of the Corporation to the holders of stock or other securities of the Corporation shall continue in force.

(5) The powers conferred by this section shall not be put into operation by the Corporation except in accordance with a scheme to be approved by the Minister of Health and such scheme may make provision for any matters incidental to the establishment and administration of the consolidated loans fund.

79.—(1) Any moneys borrowed or to be borrowed by the Corporation under any statutory borrowing power (including borrowing powers under this Act) shall be and the same are by virtue of this Act charged indifferently upon all the revenues of the Corporation.

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—
Security
for loans.

(2) The interest from time to time payable on any such moneys shall rank equally with the interest or dividends on all other securities of the Corporation created or granted in pursuance of any statutory borrowing power and all such interest and dividends shall be the first charge on all the revenues aforesaid.

80. Notwithstanding anything contained in the Acts relating to the issue of stock by the Corporation the Corporation may issue stock at such rates of interest as they may think expedient but in all other respects subject to the provisions of the said Acts.

Issue of different
classes of stock
and issue of
stock at higher
rates of interest
than those now
authorised.

81. The Corporation may use for the purpose of any statutory borrowing power possessed by them any moneys forming part of any sinking fund loans fund redemption fund reserve fund depreciation fund or insurance fund of the Corporation (in this section respectively referred to as "the lending fund") and not for the time being required subject to the following conditions :—

Use of
moneys
forming
part of
sinking and
other funds.

(a) The moneys so used shall be repaid to the lending fund as and when required for meeting the obligations for which the said fund was established or if not earlier required and subject thereto by equal yearly or half-yearly instalments of principal or of principal and interest combined within the period and out of the fund rate or revenue within and out of which a loan raised under the statutory borrowing power would be repayable :

(b) Interest shall be paid to the lending fund on any moneys so used and for the time being not repaid to the fund. Such interest shall be calculated at a rate per centum per annum to be determined by the Corporation and to be equal as nearly as may be to the rate of interest which would be payable on a loan raised on mortgage under the statutory borrowing power and shall be paid out of the fund rate or revenue which would be applicable to the payment of interest

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on a loan raised under the statutory borrowing power :

- (c) The statutory borrowing power for the purpose of which the moneys are so used shall be deemed to be exercised by such use as fully in all respects as if a loan of the same amount had been raised in exercise of the power and the provisions of any enactment relating to the re-borrowing of sums raised under the statutory borrowing power shall apply thereto.

As to
section 234
of Public
Health
Act 1875.

82. In calculating under subsection (2) of section 234 of the Public Health Act 1875 the amount which the Corporation may borrow the amount at the time of such calculation of any sinking fund or redemption fund accumulated for the purpose of providing for the repayment of loans contracted by the Corporation under the Sanitary Acts and the Public Health Act 1875 shall be deducted from the outstanding loans contracted by the Corporation under those Acts.

Apportion-
ment of
items.

83. In all cases in which the Corporation keep separate accounts for separate purposes they shall so far as reasonably practicable apportion between those accounts or carry to either of them any receipts credits payments and liabilities which from time to time it appears to them ought to be so apportioned or carried.

Period for re-
payment of
loans under
Municipal
Corporations
Act 1882.

84. Notwithstanding anything contained in the Municipal Corporations Act 1882 any money borrowed or to be borrowed by the Corporation in pursuance of that Act shall be repaid within such period not exceeding sixty years as the Minister of Health shall in each case prescribe.

Service of
summons
on members
of council.

85. Notwithstanding anything contained in the Second Schedule of the Municipal Corporations Act 1882 the summons to members of the council may be delivered at the usual place of abode or at his place of business of every member of the council by post by prepaid letter at the ordinary rate of postage and may also be delivered by hand at his place of business.

Confirmation
of agreement
with Cannock
Chase Colliery
Company
Limited.

86. The agreement dated the twenty-third day of May nineteen hundred and twenty-three and made between the Cannock Chase Colliery Company Limited of the one part and the Corporation of the other part set

out in the Fourth Schedule hereto is hereby confirmed and made binding upon the parties thereto. A.D. 1925.

87. The following sections of the Acts of 1890 1900 1914 and 1919 are incorporated with this Act and shall extend and apply thereto as if those sections with any necessary modifications were set out in this Act (namely) :—

Incorporation of further sections of Acts of 1890 1900 1914 and 1919.

The Act of 1890—

- Section 220 (As to appeal);
- Section 222 (Authentication and service of notices);
- Section 225 (Judges not disqualified).

The Act of 1900—

- Section 91 (Compensation how to be determined);
- Section 93 (Inquiries by Local Government Board) Provided that for the purposes of this Act subsection (2) of the said section 93 shall be read and have effect as if the words “five guineas” were substituted for the words “three guineas” therein.

The Act of 1914—

- Section 106 (Evidence of appointments authority &c.);
- Section 108 (Recovery of demands);
- Section 109 (Informations by whom to be laid).

The Act of 1919—

- Section 31 (Powers of Act cumulative).

88. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown. Crown rights.

89.—(1) The provisions of sections 182 to 185 of the Public Health Act 1875 so far as they relate to byelaws made by an urban sanitary authority shall apply to all byelaws made by the Corporation under the powers of this Act other than Part II. (Trolley vehicles tramways and omnibuses). Confirmation of byelaws.

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(2) Any byelaws made by the Corporation under the provisions of Part II. of this Act shall be made subject and according to the provisions of the Tramways Act 1870 with respect to the making of byelaws.

Recovery
of penalties
&c.

90.—(1) Save as otherwise by this Act expressly provided all offences against this Act or any other Act of the Corporation and all penalties forfeitures costs and expenses imposed or recoverable under any such Act or any byelaw made in pursuance thereof may be prosecuted and recovered in a summary manner Provided that costs or expenses except such as are recoverable along with a penalty shall not be recovered as penalties but may be recovered summarily as civil debts.

(2) Section 221 (Recovery of penalties &c.) of the Walsall Corporation Act 1890 and section 92 (Recovery of penalties &c.) of the Walsall Corporation Act 1900 are hereby repealed.

Saving for
charitable
endow-
ments.

91. Nothing in this Act shall prejudice vary or affect any right interest or jurisdiction in or over any charitable endowment.

Inquiries
by Minister
of Trans-
port.

92. In respect of the exercise of any powers or duties conferred on the Minister of Transport or the giving by him of any consents under this Act or any existing Act or Order of the Corporation the provisions of Part I. of the Board of Trade Arbitrations &c. Act 1874 shall apply as if the Minister of Transport were referred to therein in lieu of the Board of Trade and as if in section 4 of that Act the words “under seal of the Minister of Transport” were substituted for the words “by writing under the hand of the President or of one of the secretaries of the Board.”

Costs of
Act.

93. All the costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the borough fund and borough rate or out of money to be borrowed for that purpose.

The SCHEDULES referred to in the
foregoing Act.

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FIRST SCHEDULE.

MEMORANDUM OF AGREEMENT made the fourth day of August nineteen hundred and twenty-five between THE WOLVERHAMPTON DISTRICT ELECTRIC TRAMWAYS LIMITED (hereinafter called "the Company") of the one part and THE MAYOR ALDERMEN AND BURGESSES OF THE COUNTY BOROUGH OF WALSALL (hereinafter called "the Corporation") of the other part.

WHEREAS the Company are the owners of a light railway authorised by the South Staffordshire Light Railways Order 1900 of which a part (hereinafter called "the Willenhall Railway") extends from Crescent Road in the urban district of Willenhall to the Market Place Willenhall and the remainder (hereinafter called "the Darlaston Railway") extends from Crescent Road aforesaid to the Bull Stake in the urban district of Darlaston :

And whereas the Corporation have since July nineteen hundred and five run over and used the Willenhall Railway concurrently with the working by the Company of the Willenhall Railway as part of the said light railway :

And whereas the Corporation are the promoters of a Bill in the present session of Parliament intituled "Walsall Corporation" now pending in the House of Lords whereby they seek power to run trolley vehicles upon certain routes specified in the said Bill of which route No. 2A is co-incident with the Willenhall Railway :

And whereas the Company are opposing the said Bill in the House of Lords but have agreed to withdraw their opposition in consideration of the insertion in the said Bill of certain clauses and amendments and also in consideration of the terms of this agreement :

Now it is hereby agreed by and between the parties hereto as follows :—

1. As from the first day of October nineteen hundred and twenty-five the Corporation in lieu of the Company may exercise the powers of and shall perform and observe all the obligations

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A.D. 1925. and liabilities of the Company under the said order or otherwise
— in respect of the Willenhall Railway. °

2. (a) As from the first day of October nineteen hundred and twenty-five until the thirtieth day of September nineteen hundred and twenty-eight or until the rails of the Willenhall Railway are taken up (whichever shall be the earlier) the Corporation in lieu of the Company may exercise the powers of and shall perform and observe the obligations of the Company under the said order as to the working of the Darlaston Railway and shall not discontinue such working.

(b) The Company shall during the period referred to in the foregoing paragraph (a) afford to the Corporation all necessary facilities for exercising the powers referred to in that paragraph including (if so required by the Corporation) the supply of electricity for working the Darlaston Railway at a price of two-pence per car mile run on the Darlaston Railway.

(c) Nothing in this clause shall alter or affect the obligations of the Company in regard to the maintenance of the Darlaston Railway.

3. Nothing in this agreement shall alter or affect the status of the Company as owners of the Willenhall Railway or of the Darlaston Railway.

4. The Corporation shall be entitled to retain for their own use and benefit the revenue earned by them from the working of the Willenhall Railway and the Darlaston Railway under the powers transferred to them by this agreement and as from the first day of October nineteen hundred and twenty-five the arrangement now existing with respect to the running over and use by the Corporation of the Willenhall Railway shall cease and determine.

5. The Corporation shall in respect of the powers relating to the Willenhall Railway transferred to them by this agreement pay to the Company on the first day of January nineteen hundred and twenty-six the sum of sixty-eight pounds fifteen shillings and on each subsequent first day of July and first day of January while this agreement continues in operation the sum of one hundred and thirty-seven pounds ten shillings free of all deductions in each case.

6. The Corporation shall in respect of the maintenance by the Company of the Darlaston Railway pay to the Company during the period referred to in clause 2 hereof the sum of five hundred pounds per annum.

7. As from the first day of October nineteen hundred and twenty-five the Company shall not run over or use the Willenhall Railway or the Darlaston Railway except with the consent of the Corporation.

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8. The Corporation shall as from the first day of October nineteen hundred and twenty-five indemnify the Company from and against all obligations liabilities claims demands actions proceedings damages penalties costs charges and expenses in respect of or in any manner relating to (a) the Willenhall Railway or the working thereof and (b) until the thirtieth day of September nineteen hundred and twenty-eight or until the rails of the Willenhall Railway are taken up (whichever shall be the earlier) the working subject to the provisions of this agreement of the Darlaston Railway.

9. (a) If at any time the Corporation give to the Company notice in writing requiring them to sell to the Corporation the Willenhall Railway the Company shall thereupon sell to the Corporation and the Corporation may and shall purchase the Willenhall Railway for the sum of five thousand five hundred pounds and the Corporation shall upon the completion of the purchase pay to the Company (in addition to the said sum) the costs charges and expenses reasonably incurred by the Company in connection with the sale of the Willenhall Railway to the Corporation. Provided that the Corporation shall not give any such notice to the Company as aforesaid unless the Willenhall Urban District Council shall have previously consented to the purchase by the Corporation of the Willenhall Railway.

(b) Upon the completion of any such purchase as aforesaid the Willenhall Railway shall become and be the property of and vested in the Corporation.

10. If the Willenhall Railway is purchased in pursuance of compulsory powers by any authority or body other than the Corporation and the net sum received by the Company in respect of such purchase (after deducting all expenses reasonably incurred by the Company in connection with the determination of the purchase price and with the sale and transfer of the Willenhall Railway to the purchasing authority or body) is less than five thousand five hundred pounds the Corporation shall on demand pay to the Company the difference between the said net sum and the sum of five thousand five hundred pounds. Provided that no substantial expenses shall be incurred by the Company in connection with the determination of such purchase price unless the Company shall have given to the Corporation notice that such expenses are likely to be incurred.

11. The provisions of this agreement (other than clause 8 hereof) so far as the same relate to the Willenhall Railway but not further or otherwise shall cease and determine upon the date of completion of any such sale and purchase as is referred to in clause 9 or clause 10 hereof and upon such cesser and determination the Corporation shall pay to the Company a sum bearing to the sum of one hundred and thirty-seven pounds ten shillings the same proportion as the period from the first

A.D. 1925. day of January or first day of July immediately preceding the said date of completion to that date bears to six months
— Subject as aforesaid this agreement shall continue in force unless and until the same shall be determined by agreement between the Company and the Corporation.

12. This agreement shall be added as a schedule to the said Bill at the Committee stage in the House of Lords and a clause shall at the same time be inserted in the said Bill in the terms set forth in the schedule hereto.

In witness whereof the Company and the Corporation have hereunto caused their respective common seals to be affixed the day and year first before written.

The SCHEDULE.

CLAUSE TO BE INSERTED IN BILL.

Confirming
scheduled
agreement.

The agreement dated the fourth day of August nineteen hundred and twenty-five and made between the Wolverhampton District Electric Tramways Limited of the one part and the Corporation of the other part of which a copy is set forth in the First Schedule to this Act is hereby confirmed and made binding upon the parties thereto and effect may and shall be given thereto accordingly.

W. G. BOND
(Director).

L. EARDLEY
(Acting Secretary).

HERBERT LEE
Town Clerk
Walsall.

Seal of the
Wolverhampton
District Electric
Tramways
Limited.

Seal of the
Mayor Aldermen
and Burgesses
of the Borough
of Walsall.

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4. Whether the property is occupied— (a) Wholly as a private resi- dence - - - - - or (b) Partly as a dwelling-house and partly for trade or business purposes - - - - - or (c) Solely for trade or business purposes with no person residing on the premises other than a caretaker - - - (Number of rooms set apart for the use of the caretaker (if any) and on which floor.) (d) Nature of the business (if any) .	(a) (b) (c) (d)
5. If the occupation is in respect of part only of a house or premises state the extent and on which floor or floors - - - - -	
6. Amount of rent - - - - - or if ground rent only is paid state its amount- - - - -	£ per £ per
7. Whether the property is held under lease or agreement for a period of years - - - - - or by the year quarter month or week - - - - -	
8. (a) Date of commencement of term of lease or agreement - - - - - (b) Term of years for which granted (c) Whether granted for any con- sideration in money in addition to the rent or upon any con- dition as to laying out money in building rebuilding or im- provements - - - - - (If none insert "None.")	(a) (b) (c) Amount paid for lease £
9. If the occupier is the owner or has purchased the lease the full annual value should be stated i.e. the amount at which the property is worth to be let by the year the owner keeping it in repair - - - - -	} Annual Value £

		A.D. 1925
10. (a) Amount of land tax (if any) - (b) Amount of tithe rentcharge or of any rate or assessment in lieu of tithes paid in the year 19 (State in each case whether borne by the landlord or tenant.)	(a) £ . Borne by the	---
	(b) £ . Borne by the	
11. Whether all usual tenant's rates and taxes are paid and borne by the occupier in addition to the rent - - - - -		
12. Whether the landlord or the tenant undertakes to bear the cost of repairs insurance and other expenses necessary to maintain the property - - - (If each undertakes to bear part only of the cost of repairs state the particulars.)		

DECLARATION.

I declare that the foregoing particulars are in every respect
fully and truly stated to the best of my judgment and belief.

FOURTH SCHEDULE.

AN AGREEMENT made the twenty-third day of May one
thousand nine hundred and twenty-three between
THE CANNOCK CHASE COLLIERY COMPANY LIMITED
whose registered office is situate at Parliament
Mansions Victoria Street in the city of Westminster
(hereinafter called "the Company" which expression
shall be deemed to include their successors or assigns
where the context so requires or admits) of the one
part and THE MAYOR ALDERMEN AND BURGESSES
OF THE BOROUGH OF WALSALL (hereinafter called
"the Corporation") of the other part.

WHEREAS on the 19th day of July 1922 the Company applied to
the Electricity Commissioners under the Electricity (Supply)
Acts 1882 to 1919 for the grant of a special order under the title
of "the Chasetown and District Electricity Special Order"

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A.D. 1925. (hereinafter called "the Chasetown Order") to enable the Company to supply electricity in the area of supply set out in the First Schedule to the order which area comprises certain portions of the rural district of Lichfield specified in the said schedule and the whole of the urban district of Brownhills all in the county of Stafford :

And whereas on or about the 15th day of September 1922 the Corporation applied to the Electricity Commissioners under the said Acts for a special order under the title of "the Walsall Electricity (Extension) Special Order" (hereinafter called "the Walsall Order") for power to supply electricity in certain added areas to the area of supply of the Corporation which added areas are specified in the First Schedule to the Walsall Order and include the urban district of Brownhills with certain exceptions to that district set out in the said schedule :

And whereas on the 20th September 1922 the Corporation lodged with the Electricity Commissioners objections to the Chasetown Order in which objections the Corporation described their then existing electricity area and the construction of a new station at Birchills for the purpose of meeting a considerably higher demand for electricity in the existing area of supply of the Corporation so as to afford a supply in the districts adjoining the borough including the urban district of Brownhills and in the said objections the Corporation also described the manner in which they were supplying or were able to supply certain collieries in the Brownhills district through a ring main proposed to be laid by the Corporation from the Birchills station through the parish of Great Wyrley the urban district of Brownhills and the rural district of Walsall and in the said objections the Corporation alleged that if the Chasetown Order was granted the future development for the supply of electricity on the lines proposed by the Corporation would be prejudiced and the proposed ring main would probably be rendered commercially impracticable And in the said objections the Corporation referred to their application to the Electricity Commissioners for the Walsall Order and upon the aforesaid facts and for other reasons stated in the objections the Corporation alleged that the Chasetown Order should not be granted :

And whereas on the 10th day of October 1922 the Company deposited with the Electricity Commissioners replies to the said objections of the Corporation And on the same day the Company deposited with the Electricity Commissioners objections to the Walsall Order setting out the reasons why the supply of electricity to the urban district of Brownhills should be in the hands of the Company and not in the hands of the Corporation :

Now with a view of settling the aforesaid disputes it has been agreed between the Company and the Corporation as follows :—

A.D. 1925.

1. The Company will not oppose any application by the Corporation for power to carry the proposed ring main of the Corporation across the area of supply of the Company described in the Chasetown Order or to supply electricity in bulk to collieries within the area of the Brownhills Urban District Council for colliery purposes only or to collieries in areas adjoining the said area or to construct extra high tension mains transformers and switchgear for the supply of such collieries. And the Company hereby consent to such supplies and will if requested by the Corporation in any particular case of such supply give their formal consent in writing to such supply. For the purpose of this clause the word "collieries" shall be deemed to include works in connection with and ancillary to collieries (including brickworks) and the expression "colliery purposes" shall be deemed to include purposes of such works.

2. The Corporation shall withdraw their objections to the Chasetown Order and shall not further oppose the said order.

3. The Corporation shall withdraw from the Walsall Order the power to supply electricity in the Brownhills Urban District or at their option the Corporation may amend the said order so as to empower them to give the supplies referred to in clause 1 of this agreement.

4. The said ring main or high tensions mains shall be laid and maintained so as not to interfere with the system of supply of the Company and in like manner the Company's mains shall be laid and maintained so as not to interfere with the said mains of the Corporation.

5. The Company shall not be entitled except by agreement with the Corporation to take over any part of the said proposed ring main of the Corporation which is or may be situated within the area of supply of the Company or to take over under any statute or order of a Government department any supply of electricity given or to be given by the Corporation under any Order granted or which may hereafter be granted to the Corporation under section 6 of the Electric Lighting Act 1909 or any Act amending the same.

6. The Corporation shall not supply electricity without the consent of the Company in any part of the area of supply of the Company described in the Chasetown Order except for the purposes mentioned in clause 1 of this agreement.

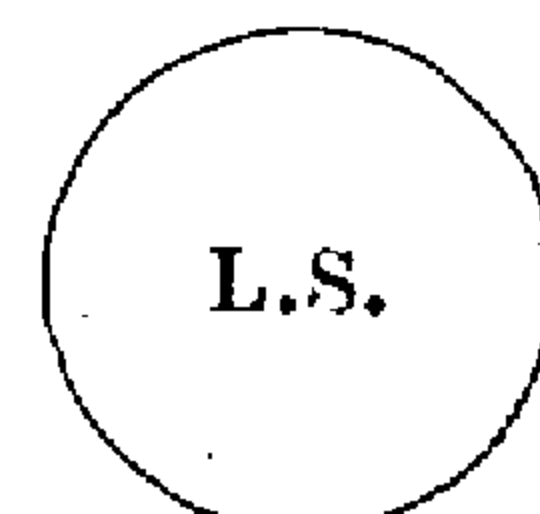
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7. The Company shall withdraw their objections to the Walsall Order.

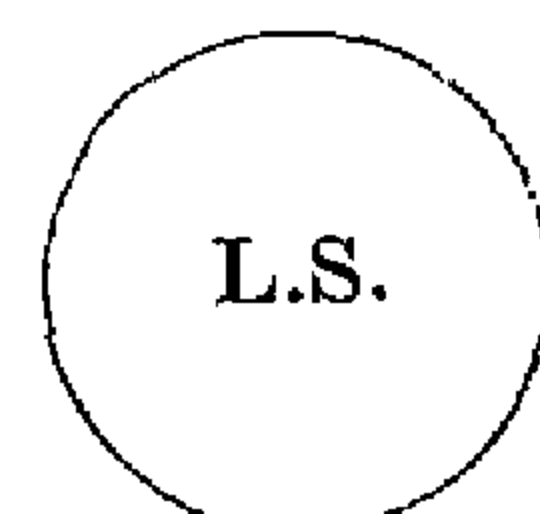
In witness whereof the respective common seals of the Company and the Corporation have been hereunto affixed the day and year first above written.

The common seal of the Cannock Chase }
Colliery Co. Ltd. was hereunto affixed }
in the presence of



(Sd.) W. E. WATERHOUSE }
 H. F. BIDDER } Directors.
 E. A. WHIPHAM
 Secretary.

The common seal of the mayor aldermen }
and burgesses of the borough of Walsall }
was hereunto affixed in the presence of



HERBERT LEE
Town Clerk.

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